



Classification (Publications, Films and Computer Games) Act 1995

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About this compilation

This compilation

This is a compilation of the *Classification (Publications, Films and Computer Games) Act 1995* that shows the text of the law as amended and in force on 21 February 2025 (the **compilation date**).

The notes at the end of this compilation (the **endnotes**) include information about amending laws and the amendment history of provisions of the compiled law.

Uncommenced amendments

The effect of uncommenced amendments is not shown in the text of the compiled law. Any uncommenced amendments affecting the law are accessible on the Register (www.legislation.gov.au). The details of amendments made up to, but not commenced at, the compilation date are underlined in the endnotes. For more information on any uncommenced amendments, see the Register for the compiled law.

Application, saving and transitional provisions for provisions and amendments

If the operation of a provision or amendment of the compiled law is affected by an application, saving or transitional provision that is not included in this compilation, details are included in the endnotes.

Editorial changes

For more information about any editorial changes made in this compilation, see the endnotes.

Modifications

If the compiled law is modified by another law, the compiled law operates as modified but the modification does not amend the text of the law. Accordingly, this compilation does not show the text of the compiled law as modified. For more information on any modifications, see the Register for the compiled law.

Self-repealing provisions

If a provision of the compiled law has been repealed in accordance with a provision of the law, details are included in the endnotes.

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An Act relating to the classification of publications, films and computer games, and related matters

Part 1—Preliminary

1 Short title

This Act may be cited as the *Classification (Publications, Films and Computer Games) Act 1995*.

2 Commencement

- (1) Sections 1 and 2 commence on the day on which this Act receives the Royal Assent.
- (2) Subject to subsection (3), the remaining provisions of this Act commence on a day to be fixed by Proclamation.
- (3) If the provisions referred to in subsection (2) do not commence under that subsection within the period of 12 months beginning on the day on which this Act receives the Royal Assent, they commence on the first day after the end of that period.

3 Purpose

The main purpose of this Act is to provide for the classification of publications, films and computer games for the Australian Capital Territory. This Act is intended to form part of a Commonwealth/State/Territory scheme for the classification of publications, films and computer games and for the enforcement of those classifications.

Note: Provisions dealing with the consequences of not having material classified and the enforcement of classification decisions are to be found in complementary laws of the States and Territories.

3A Simplified outline of this Act

This Act establishes a scheme for classifying publications, films and computer games for the Australian Capital Territory.

Certain films and computer games are exempt films or exempt computer games.

A publication, film or computer game that is shown as part of a registered event, or by an approved cultural institution, may be subject to a conditional cultural exemption in relation to that showing, if certain criteria are met.

Films classified under the *Broadcasting Services Act 1992*, the *Australian Broadcasting Corporation Act 1983* or the *Special Broadcasting Service Act 1991* are taken to be classified by the Board in some circumstances.

A publication, film or computer game may be classified:

- (a) by the Classification Board, on application; or
- (b) if there is an approved classification tool for the publication, film or computer game—by the operation of the approved classification tool.

A film or computer game may also be classified by an accredited person.

If a film or computer game is modified in specified ways and is then classified in unmodified form at a later time, both the modified and unmodified forms of the film or computer game have the same classification from that time.

If a classified film or computer game is modified, the film or computer game, as modified, becomes unclassified unless specified exceptions apply.

The classification of a publication, film or computer game must be revoked by the Board in certain circumstances.

Once a publication, film or computer game is classified, it cannot be reclassified for 2 years. However, applications for a review of classification decisions can be made to the Classification Review Board and films classified under the *Broadcasting Services Act 1992*, the *Australian Broadcasting Corporation Act 1983* or the *Special Broadcasting Service Act 1991* that are taken to be classified by the Board can be reclassified in some circumstances.

The Director of the Board has the power to require publishers of certain unclassified publications, films and computer games to apply for classification of that material in certain circumstances. It is an offence to fail to comply with such a requirement.

This Act also provides for copies of unclassified publications, films and computer games that, in the Secretary's opinion, would be likely to be classified RC to be given to the Australian Federal Police and other specified bodies.

This Act also prohibits the possession, control and supply of certain material in certain areas of the Northern Territory. Police officers have powers to seize such material in those areas.

Note: This Act is part of a national scheme, and there is complementary legislation in all States and Territories. Under the complementary legislation, some publications and most films and computer games must be classified before they can be legally made available to the public.

4 Powers and functions under State or Territory laws

The Board, the Review Board, the Director and the Convenor may exercise powers and perform functions relating to the classification of publications, films and computer games that are conferred on them under an arrangement between the Commonwealth and a State or the Commonwealth and the Northern Territory.

4A Concurrent operation of State and Territory laws

- (1) This Act is not intended to exclude or limit the concurrent operation of any law of a State or Territory.
- (2) Without limiting subsection (1), this Act is not intended to exclude or limit the concurrent operation of a law of a State or Territory that makes:
 - (a) an act or omission that is an offence against a provision of this Act; or
 - (b) a similar act or omission;an offence against the law of the State or Territory.
- (3) Subsection (2) applies even if the law of the State or Territory does any one or more of the following:
 - (a) provides for a penalty for the offence that differs from the penalty provided for in this Act;
 - (b) provides for a fault element in relation to the offence that differs from the fault elements applicable to the offence under this Act;
 - (c) provides for a defence in relation to the offence that differs from the defences applicable to the offence under this Act.

5 Definitions

In this Act, unless the contrary intention appears:

ACNC type of entity means an entity that meets the description of a type of entity in column 1 of the table in subsection 25-5(5) of the *Australian Charities and Not-for-profits Commission Act 2012*.

additional content in a film that also comprises a classified film or an exempt film includes, but is not limited to:

- (a) additional scenes for the classified film or exempt film (such as alternative endings or deleted scenes); and
 - (b) a film of the making of the classified film or exempt film;
- and

- (c) interviews with, and commentaries by, directors, actors and other persons involved with the making of the classified film or exempt film; and
 - (d) such other material as is prescribed by the regulations;
- but does not include:
- (e) a work; or
 - (f) such other material as is prescribed by the regulations.

additional content assessor means a person who is authorised by the Director under section 22D.

add-on means a computer program, data associated with a computer program or a computer program and any associated data referred to in subsection 5A(2).

adult means a person who is 18 or older.

advertisement for a publication, a film or a computer game means any form of advertising for the publication, film or game, and includes:

- (a) advertising, whether visual or audible, whether in the form of written or spoken words or other sounds and whether in a book, paper, magazine, poster, photograph, sketch, program, film or slide or in any other form; and
 - (b) advertising on a container or wrapping enclosing the publication, film or game; and
 - (c) advertising on the internet;
- but does not include:
- (d) advertising for an exempt film or exempt computer game; or
 - (da) advertising for a particular demonstration, exhibition or screening of a publication, film or computer game, if the publication, film or computer game is subject to a conditional cultural exemption in relation to the demonstration, exhibition or screening; or
 - (e) advertising, in an imported publication, for a publication, film or computer game that has not been published in Australia; or

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- (f) advertising, in an imported film or computer game that is in a form that cannot be modified, for a film or computer game that has not been published in Australia (the ***advertised film or game***), whether or not the advertised film or game is later published in Australia; or
- (g) advertising by means of a product:
 - (i) that refers to or is derived from the publication, film or computer game; and
 - (ii) that is primarily intended to be sold or distributed to the general public or to a section of the general public; and
 - (iii) that a reasonable person would not consider to be a primary source of classification information for consumers about the publication, film or computer game.

approved classification tool: see subsection 22CA(2).

approved cultural institution: see section 6F.

Board means the Classification Board.

business day means a day other than a Saturday, Sunday or public holiday.

classifiable elements has the same meaning as in the Guidelines determined under subsection 12(1) and as in force from time to time.

classification certificate means a certificate issued under section 25.

classified means classified under this Act.

Note: Certain films classified under the *Broadcasting Services Act 1992*, the *Australian Broadcasting Corporation Act 1983* or the *Special Broadcasting Service Act 1991* are taken to be classified under this Act: see section 6HA.

Code means the National Classification Code, set out in the Schedule to this Act as originally enacted, as amended in accordance with section 6.

computer generated image means an image (including an image in the form of text) produced by use of a computer on a computer monitor, television screen, liquid crystal display or similar medium from electronically recorded data.

conditional cultural exemption rules means rules made by the Minister under section 6G.

constitutional corporation means a corporation to which paragraph 51(xx) of the Constitution applies.

constitutional trade or commerce means trade or commerce:

- (a) between Australia and a place outside Australia; or
- (b) among the States; or
- (c) between a State and a Territory; or
- (d) within a Territory; or
- (e) between 2 Territories.

contentious material, in relation to a film or computer game, means material that would be likely to cause it to be classified:

- (a) for a film—M or a higher classification; or
- (b) for a computer game—M or a higher classification.

Convenor means the Convenor of the Review Board.

CSC (short for Commonwealth Superannuation Corporation) has the same meaning as in the *Governance of Australian Government Superannuation Schemes Act 2011*.

decision means a decision of the Board:

- (a) to classify or refuse to classify a publication, film or computer game (including a decision of the Board under section 39 or 97A or under subsection 22CH(4) or 22L(4) following revocation); or
- (b) to determine the consumer advice to apply to a publication, film or computer game; or
- (c) to approve or refuse to approve an advertisement for a publication, film or computer game (including a decision of

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the Board under section 39) or to impose conditions on such an approval; or

- (d) to assess or refuse to assess the likely classification of an unclassified film or an unclassified computer game; or
- (da) to revoke an assessment of the likely classification of an unclassified film or an unclassified computer game; or
- (e) to decline to deal with or to deal further with an application under this Act; or
- (f) to make or refuse to make a declaration under subsection 13(3); or
- (g) to revoke such a declaration; or
- (h) to impose a condition under section 13A; or
- (i) to revoke the classification of a film or computer game under section 21A; or
- (ia) to revoke the classification of a film under section 21AA; or
- (ib) to revoke the classification of a computer game under section 21AC; or
- (j) to revoke the classification of, or consumer advice for, a publication, film or computer game under section 22B.

demonstrate includes exhibit, display, screen, play or make available for playing.

Deputy Director means the Deputy Director of the Board.

determined markings means markings determined under paragraph 8(1)(a).

Director means the Director of the Board.

enforcement application means an application that is made:

- (a) by the Commonwealth, a State or a Territory, or by an authority or agency of the Commonwealth, a State or a Territory; and
- (b) for the purpose of investigating or prosecuting an offence against a law of the Commonwealth, a State or a Territory.

exempt computer game has the meaning given by section 6B.

exempt film has the meaning given by section 6B.

film includes a cinematograph film, a slide, video tape and video disc and any other form of recording from which a visual image, including a computer generated image, can be produced (together with its sound track), but does not include:

- (a) a computer game; or
- (b) an advertisement for a publication, a film or a computer game.

Finance Minister means the Minister administering the *Public Governance, Performance and Accountability Act 2013*.

government body means:

- (a) a department of the Commonwealth, a State or a Territory; or
- (b) an agency or authority of the Commonwealth, a State or a Territory; or
- (c) a body established for the purposes of local government by or under a law applying in a State or Territory.

interactive film means a film to which subsection 14(4) applies.

interactive game means a game in which the way the game proceeds and the result achieved at various stages of the game is determined in response to the decisions, inputs and direct involvement of the player.

member means a member of the Board, and includes a temporary member.

minor means a person under 18.

participating Minister means a Minister of a State or Territory who is responsible for censorship matters where the State or Territory is a participant in the scheme referred to in section 3, but does not include such a Minister in relation to action to be taken under a provision of this Act if:

- (a) the action relates to publications, films or computer games; and

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- (b) the State or Territory does not participate in the scheme in relation to publications, films or computer games, as the case may be.

publication means any written or pictorial matter, but does not include:

- (a) a film; or
- (b) a computer game; or
- (c) an advertisement for a publication, a film or a computer game.

publish includes sell, offer for sale, let on hire, exhibit, display, distribute and demonstrate.

registered event: see section 6D.

Review Board means the Classification Review Board.

social sciences has the meaning given by section 5C.

subject to a conditional cultural exemption: for when a publication, film or computer game is **subject to a conditional cultural exemption**, see sections 6C and 6E.

submittable publication means an unclassified publication that, having regard to section 9A or to the Code and the classification guidelines to the extent that they relate to publications, contains depictions or descriptions that:

- (a) are likely to cause the publication to be classified RC; or
- (b) are likely to cause offence to a reasonable adult to the extent that the publication should not be sold or displayed as an unrestricted publication; or
- (c) are unsuitable for a minor to see or read.

temporary member means a person appointed under section 50.

work means:

- (a) a cinematic composition that appears to be:
 - (i) self-contained; and

- (ii) produced for viewing as a discrete entity; or
 - (aa) a television program; or
 - (b) a computer game that is produced for playing as a discrete entity;
- but does not include an advertisement.

5A Meaning of *computer game*

- (1) A ***computer game*** is a computer program and any associated data capable of generating a display on a computer monitor, television screen, liquid crystal display or similar medium that allows the playing of an interactive game.
- (2) A computer program, data associated with a computer program or a computer program and any associated data that:
 - (a) is capable of generating new elements or additional levels into a game (the ***original game***) that is a computer game under subsection (1); and
 - (b) is contained in a device separate from that containing the original game;is also a ***computer game***.
- (3) However, a ***computer game*** does not include an advertisement for a publication, film or computer game.

5C Meaning of *social sciences*

- (1) For the purposes of this Act, ***social sciences*** means the following fields:
 - (a) economics;
 - (b) geography;
 - (c) anthropology;
 - (d) linguistics;
 - (e) such other fields (if any) as are specified in an instrument under subsection (2).

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- (2) The Minister may, by legislative instrument, specify fields for the purposes of paragraph (1)(e).

6 Amendments of the Code

- (1) The Code may be amended from time to time in accordance with this section.
- (2) If the Minister and each participating Minister agree to an amendment of the Code, the Code is taken to be amended accordingly.
- (3) If the Code is amended, the Minister must cause a copy of the amended Code to be published in the *Gazette*.

6A Application of the *Criminal Code*

Chapter 2 of the *Criminal Code* applies to all offences against this Act.

Note: Chapter 2 of the *Criminal Code* sets out the general principles of criminal responsibility.

Part 1A—Exemptions etc.

Division 1A—Preliminary

6AA Simplified outline of this Part

Certain films and computer games are exempt films or exempt computer games.

A publication, film or computer game that is shown as part of a registered event that meets certain criteria may be subject to a conditional cultural exemption in relation to that showing.

A publication, film or computer game that is shown by an approved cultural institution may be subject to a conditional cultural exemption in relation to that showing.

Films classified under the *Broadcasting Services Act 1992*, the *Australian Broadcasting Corporation Act 1983* or the *Special Broadcasting Service Act 1991* are taken to be classified by the Board in some circumstances.

The Director of the Classification Board can modify the operation of the provisions relating to conditional cultural exemptions in relation to specified publications, films, computer games or organisations.

Division 1—Exempt films and exempt computer games

6B *Exempt films and exempt computer games*

- (1) Subject to subsection (3), a film specified in this table is an ***exempt film***. Applications for classification of exempt films are not necessary.

Exempt films		
Item	Type	Description
1	Business	A film of a promotional, technical or similar nature for use in the course of a business or trade
2	Accounting	A film for use in the keeping or verification of accounts
3	Professional	A film of a promotional, technical or similar nature for use in the course of a profession
4	Scientific	A film for use pursuant to a branch of knowledge conducted on objective principles involving the systemised observation of, and experiment with, phenomena
5	Educational	A film whose main purpose is for training, instruction or reference, as a manual, a lesson, an encyclopaedia or a guide
6	Current affairs	A film wholly or mainly comprising news reports or information about, or analysis of, current issues or events of public interest or importance
7	Hobbyist	A film wholly or mainly comprising a documentary record of a hobby or activity
8	Sporting	A film wholly or mainly comprising a documentary record of a sporting event
9	Family	A film wholly or mainly comprising a documentary record of a family event or activity
10	Live performance	A film wholly or mainly comprising a documentary record of a live artistic performance or that is used within such a performance

Exempt films		
Item	Type	Description
11	Musical presentation	A film wholly or mainly comprising a musical presentation
12	Religious	A film wholly or mainly comprising a documentary record of a religious event or activity
13	Community or cultural	A film wholly or mainly comprising a documentary record of a community or cultural activity or event
14	Social sciences	A film wholly or mainly comprising information about, or analysis of, subjects relating to the social sciences
15	Natural history	A natural history film, or any film depicting wholly or mainly natural scenery
16	Language other than English	A film to which all of the following apply: (a) the film is wholly in a language other than English (disregarding any minor and infrequent uses of the English language or any English language subtitles or captioning); (b) the film has been imported into Australia for the sole purpose of being included in the collection of one or more the following: (i) a public library; (ii) a library of a tertiary educational institution; (c) the film is published in a physical format; (d) no more than 500 copies of the film in that format have been imported into Australia; (e) the film, if it were classified, would be likely to be classified G or PG

- (2) Subject to subsection (3), a computer game is an ***exempt computer game*** if it forms part of or is included in computer software specified in this table. Applications for classification of exempt computer games are not necessary.

Part 1A Exemptions etc.

Division 1 Exempt films and exempt computer games

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Exempt computer games		
Item	Type	Description
1	Business	Software for use in the course of a business or trade
2	Accounting	Software for use in the keeping or verification of accounts
3	Professional	Software for use in the course of a profession
4	Scientific	Software for use pursuant to a branch of knowledge conducted on objective principles involving the systemised observation of, and experiment with, phenomena
5	Educational	Software whose main purpose is for training, instruction or reference, as a manual, a lesson, an encyclopaedia or a guide

Exceptions

- (3) However, a film or computer game is not an ***exempt film*** or an ***exempt computer game*** if it contains:
- (a) an advertisement that has been refused approval; or
 - (b) an advertisement for an unclassified film or an unclassified computer game:
 - (i) that has been assessed in accordance with section 31 or under section 33 as being likely to be classified M or a higher classification; or
 - (ii) the likely classification of which has not been assessed in accordance with section 31 or under section 33; or
 - (c) an advertisement for a film, or for a computer game, that has been classified M or a higher classification; or
 - (d) material that would be likely to cause the film or computer game to be classified M or a higher classification.

Division 2—Conditional cultural exemptions

6C Conditional cultural exemptions—registered events

If:

- (a) a publication, film or computer game (the *relevant material*) is demonstrated, exhibited or screened (the *relevant showing*) as part of a registered event; and
- (b) the relevant material, if it were classified, would not be likely to be classified RC, X 18+ or Category 2 restricted; and
- (c) in the case of relevant material that, if it were classified, would be likely to be classified M or MA 15+—persons aged under 15 years are not present at the relevant showing unless accompanied by an adult; and
- (d) in the case of relevant material that, if it were classified, would be likely to be classified R 18+ or Category 1 restricted—only persons aged 18 years and over are present at the relevant showing; and
- (e) the relevant material has not already been demonstrated, exhibited or screened more than the number of times specified in the conditional cultural exemption rules; and
- (f) the information, about the relevant material, that is prescribed by the conditional cultural exemption rules is given, in the manner and form prescribed by the conditional cultural exemption rules, to the persons present at the relevant showing; and
- (g) the conditions (if any) specified in the conditional cultural exemption rules are satisfied;

the relevant material is *subject to a conditional cultural exemption*, but only in relation to the relevant showing.

6D Registered events

An event is a *registered event* if:

- (a) the event wholly or mainly involves, or wholly or mainly relates to, one or more of the following:

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- (i) the display or screening of films;
- (ii) the display or demonstration of computer games;
- (iii) the display or exhibition of publications; and
- (b) the films, computer games, or publications (as the case may be) referred to in paragraph (a) are of a medical, scientific, educational, cultural or artistic character; and
- (c) the event is organised by an organisation that has, in relation to the event, completed the registration process prescribed by the conditional cultural exemption rules; and
- (d) the organisation has, in relation to the event, paid the fee (if any) prescribed by the conditional cultural exemption rules; and
- (e) the conditions (if any) specified in the conditional cultural exemption rules are satisfied.

6E Conditional cultural exemptions—approved cultural institutions

If:

- (a) a publication, film or computer game (the *relevant material*) is demonstrated, exhibited or screened (the *relevant showing*) by an approved cultural institution; and
- (b) the relevant material, if it were to be classified, would not be likely to be classified RC, X 18+ or Category 2 restricted; and
- (c) in the case of relevant material that, if it were classified, would be likely to be classified M or MA 15+—persons aged under 15 years are not present at the relevant showing unless accompanied by an adult; and
- (d) in the case of relevant material that, if it were classified, would be likely to be classified R 18+ or Category 1 restricted—only persons aged 18 years and over are present at the relevant showing; and
- (e) the information, about the relevant material, that is prescribed by the conditional cultural exemption rules is given, in the manner and form prescribed by the conditional cultural

exemption rules, to the persons present at the relevant showing; and
(f) the conditions (if any) specified in the conditional cultural exemption rules are satisfied;
the relevant material is ***subject to a conditional cultural exemption***, but only in relation to the relevant showing.

6F Approved cultural institutions

- (1) An organisation is an ***approved cultural institution*** if:
 - (a) the organisation was formed wholly or mainly for the purpose of carrying on activities of an educational, cultural or artistic nature; and
 - (b) the organisation wholly or mainly carries on activities of an educational, cultural or artistic nature; and
 - (c) the organisation has a sound reputation in relation to the carrying on of those activities; and
 - (d) the organisation does not demonstrate, exhibit or screen unclassified publications, films or computer games that, if classified, would be likely to be classified RC, X 18+ or Category 2 restricted; and
 - (e) the organisation has satisfied the training requirements prescribed by the conditional cultural exemption rules; and
 - (f) the organisation has paid the fee (if any) prescribed by the conditional cultural exemption rules; and
 - (g) the conditions (if any) specified in the conditional cultural exemption rules are satisfied.
- (2) An organisation is an ***approved cultural institution*** if:
 - (a) the organisation is a government body; and
 - (b) the organisation does not demonstrate, exhibit or screen unclassified publications, films or computer games that, if classified, would be likely to be classified RC, X 18+ or Category 2 restricted; and
 - (c) the organisation has satisfied the training requirements prescribed by the conditional cultural exemption rules; and

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- (d) the organisation has paid the fee (if any) prescribed by the conditional cultural exemption rules; and
- (e) the conditions (if any) specified in the conditional cultural exemption rules are satisfied.

6G Conditional cultural exemption rules

The Minister may, by legislative instrument, make rules (the *conditional cultural exemption rules*) prescribing matters:

- (a) required or permitted by this Division to be prescribed by the conditional cultural exemption rules; or
- (b) necessary or convenient to be prescribed for carrying out or giving effect to this Division.

6H Modifications etc. in relation to this Division

- (1) The Director may, if the Director considers it appropriate to do so:
 - (a) exempt a particular publication, film, computer game, event or organisation from any or all provisions of this Division or of the conditional cultural exemption rules; or
 - (b) declare that any or all provisions of this Division or of the conditional cultural exemption rules apply subject to such modifications as are set out in the declaration in relation to a particular publication, film, computer game, event or organisation.
- (2) An exemption or declaration under subsection (1) may only be made on application by the relevant organisation.
- (3) An application under subsection (2) must:
 - (a) be in a form approved, in writing, by the Director; and
 - (b) be accompanied by the prescribed fee (if any).
- (4) An exemption or declaration under subsection (1):
 - (a) must be in writing; and
 - (b) is not a legislative instrument.
- (5) The Director may, by legislative instrument:

- (a) exempt a specified class of publications, films, computer games, events or organisations from any or all provisions of this Division or of the conditional cultural exemption rules; or
 - (b) declare that any or all provisions of this Division or of the conditional cultural exemption rules apply subject to such modifications as are set out in the declaration in relation to a specified class of publications, films, computer games, events or organisations;
- if the Director considers it appropriate to do so.
- (6) Applications may be made to the Administrative Review Tribunal for review of decisions of the Director under subsection (1).

Division 3—Films classified under certain other Acts

6HA Certain films classified under certain other Acts are taken to be classified under this Act

- (1) A film is taken to have been classified by the Board under this Act if:
- (a) the film has been classified under the *Broadcasting Services Act 1992*, the *Australian Broadcasting Corporation Act 1983* or the *Special Broadcasting Service Act 1991* at R18+ or a lower classification; and
 - (b) the film has not previously been classified under this Act; and
 - (c) after the film has been classified under the *Broadcasting Services Act 1992*, the *Australian Broadcasting Corporation Act 1983* or the *Special Broadcasting Service Act 1991*, a person (the **post-classification publisher**) proposes to publish the film.

Note 1: This Act does not apply to the broadcasting of the film: see section 92.

Note 2: The deemed classification by the Board is reviewable under Part 5. The post-classification publisher may also seek to have the film reclassified under Part 2: see section 6HB.

- (2) The film is taken to have the same classification as the classification under the *Broadcasting Services Act 1992*, the *Australian Broadcasting Corporation Act 1983* or the *Special Broadcasting Service Act 1991* that occurred most recently before the post-classification publisher proposes to publish the film.
- (3) The classification under this Act takes effect:
- (a) if the post-classification publisher is an entity that is licenced to provide broadcasting services under the *Broadcasting Services Act 1992*—at the time the post-classification publisher proposes to publish the film; or
 - (aa) if the post-classification publisher is the Australian Broadcasting Corporation or the Special Broadcasting

- Service Corporation—at the time the post-classification publisher proposes to publish the film; or
- (b) otherwise—at the time the post-classification publisher provides a notice of the classification under subsection (4).

Notice of classification

- (4) A notice for the purposes of paragraph (3)(b) must:
- (a) include details of the classification and the post-classification publisher; and
- (b) be in a form approved by the Secretary of the Department.

Exceptions

- (5) Subsection (1) does not apply to a film if:
- (a) the film is a modified version of the film classified under the *Broadcasting Services Act 1992*, the *Australian Broadcasting Corporation Act 1983* or the *Special Broadcasting Service Act 1991* (other than a film that only has modifications of a kind referred to subsection 21(2) or (3)); or
- (b) the film contains an advertisement that has been refused approval under this Act.

6HB Reclassification of films taken to be classified by the Board

If:

- (a) a film is taken to have been classified by the Board under this Act under section 6HA; and
- (b) the post-classification publisher of the film considers that the classification is not in accordance with the Code or the classification guidelines; and
- (c) the classification of the film has not been reviewed under Part 5; and
- (d) film has not been reclassified under Part 4 or reclassified under Part 2 due to a previous operation of this section;
- then, despite any other provision of this Act, the film may be reclassified under Part 2.

Part 2—Classification

Division 1—Preliminary

6J Simplified outline of this Part

There are different types of classifications for publications, films and computer games.

The Minister may determine markings for each type of classification, as well as principles about the display of markings and of consumer advice for classified material.

Classified material, and advertisements for classified material, must display markings and consumer advice in accordance with the Minister's determination.

It is an offence to use markings for classifications in particular circumstances.

A publication, film or computer game may be classified:

- (a) by the Classification Board, on application; or
- (b) if there is an approved classification tool for the publication, film or computer game—by the operation of the approved classification tool.

A film or computer game may also be classified by an accredited person.

Consumer advice must be determined for each classified film or computer game. Consumer advice may be determined for certain publications and must be determined for a publication classified by the operation of an approved classification tool.

If a film or computer game is modified in specified ways and is then classified in unmodified form, both the modified and

unmodified forms of the film or computer game have the same classification from that time.

If a classified film or computer game is modified, the film or computer game, as modified, becomes unclassified unless specified exceptions apply.

A classified film or computer game must have its classification revoked by the Board in certain circumstances.

The Director of the Board may require publishers of certain unclassified publications, films and computer games to apply for classification of that material in certain circumstances. It is an offence to fail to comply with such a requirement.

Publications, films and computer games that are classified by the Board must be issued with a classification certificate. Applications may be made to the Director for a certificate for publications, films and computer games that are classified by the operation of an approved classification tool.

7 Types of classifications

- (1) The following are the different types of classifications for publications in ascending order:

Unrestricted

Category 1 restricted

Category 2 restricted

RC Refused Classification.

- (2) The following are the different types of classifications for films in ascending order:

G General

PG Parental Guidance

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M Mature

MA 15+ Mature Accompanied

R 18+ Restricted

X 18+ Restricted

RC Refused Classification.

- (3) The following are the different types of classifications for computer games in ascending order:

G General

PG Parental Guidance

M Mature

MA 15+ Mature Accompanied

R 18+ Restricted

RC Refused Classification.

- (4) In subsections (1) to (3), text that is not in bold is included by way of explanation and does not form part of the classification.

8 Determined markings and consumer advice

- (1) The Minister may, by legislative instrument, determine:
- (a) markings for each type of classification giving information about the classification; and
 - (b) principles relating to the display of the markings; and
 - (c) principles relating to the display of consumer advice for publications, films and computer games.

- (1A) Without limiting paragraph (1)(b), the Minister may determine principles relating to the manner in which the markings are to be displayed.

- (1B) Without limiting paragraph (1)(c), the Minister may determine principles relating to the manner in which consumer advice is to be displayed.
- (2) A determination may specify additional material for markings for an add-on.
- (3) A determination may specify additional material for markings for a publication that has been classified subject to a condition under section 13A.
- (3A) Each of the following must display markings and consumer advice in accordance with any determinations under this section:
 - (a) a classified film;
 - (b) a classified computer game;
 - (c) a classified publication;
 - (d) an advertisement for such a film, computer game or publication.

Note: Provisions dealing with the consequences of not displaying markings and consumer advice in accordance with a determination under this section are to be found in complementary laws of the States and Territories.

- (3B) Subsection (3A) applies to:
 - (a) a film, computer game or publication; or
 - (b) an advertisement for a film, computer game or publication;(the **relevant material**) where:
 - (c) the publisher of the relevant material is a constitutional corporation; or
 - (d) the relevant material is published in the course of, or in relation to, constitutional trade or commerce; or
 - (e) the relevant material is published in the course of, or in relation to, the supply of goods or services to the Commonwealth or an authority or instrumentality of the Commonwealth; or
 - (f) the relevant material is published using a postal, telegraphic, telephonic or other like service (within the meaning of paragraph 51(v) of the Constitution); or

- (g) the relevant material is published in a Territory or in a Commonwealth place.

8AA Use of markings in relation to goods other than films etc.

Using a determined marking in relation to certain goods

- (1) A person commits an offence if:
 - (a) the person, in trade or commerce, uses a marking in relation to goods; and
 - (b) the marking is a determined marking; and
 - (c) the goods are not:
 - (i) a publication, film or computer game; or
 - (ii) goods used to promote a publication, film or computer game that has the classification for that marking.

Penalty: 20 penalty units.

Using a determined marking in relation to certain services

- (2) A person commits an offence if:
 - (a) the person, in trade or commerce, uses a marking in relation to a service; and
 - (b) the marking is a determined marking; and
 - (c) the service is not for the purposes of the classification system provided for by this Act or a corresponding law of a State or Territory.

Penalty: 20 penalty units.

Selling etc. certain goods with a determined marking

- (3) A person commits an offence if:
 - (a) a determined marking is used in relation to goods; and
 - (b) the person does any of the following with the goods:
 - (i) imports them into Australia for sale;
 - (ii) sells them;

- (iii) offers them for sale;
- (iv) lets them on hire; and
- (c) the goods are not:
 - (i) a publication, film or computer game; or
 - (ii) goods used to promote a publication, film or computer game that has the classification for that marking.

Penalty: 20 penalty units.

Extended meaning of determined marking

- (4) For the purposes of this section, a determined marking includes a marking so closely resembling a determined marking as to be likely to be mistaken for it.

Constitutional reach

- (5) This section has effect only if one or more of the following paragraphs applies:
 - (a) the conduct constituting the offence occurs to any extent outside Australia;
 - (b) the conduct constituting the offence occurs within a Territory or a Commonwealth place;
 - (c) the goods belong to a constitutional corporation;
 - (d) the person is a constitutional corporation;
 - (e) the goods are provided in the course of, or intended for, constitutional trade or commerce;
 - (f) the conduct constituting the offence is for the purposes of constitutional trade or commerce;
 - (g) the conduct constituting the offence involves the use of postal, telegraphic, telephonic and other like services (within the meaning of paragraph 51(v) of the Constitution).

8A Notice about classifications

The Minister may, in writing, approve a form for a notice about classifications.

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Note: Provisions that require sellers and exhibitors of classified material to display a notice about classifications where the material is sold or exhibited can be found in complementary laws of the States and Territories.

9 Classification in accordance with the Code

Subject to section 9A, publications, films and computer games are to be classified in accordance with the Code and the classification guidelines.

9A Refused Classification for publications, films or computer games that advocate terrorist acts

- (1) A publication, film or computer game that advocates the doing of a terrorist act must be classified RC.
- (2) Subject to subsection (3), for the purposes of this section, a publication, film or computer game *advocates* the doing of a terrorist act if:
 - (a) it directly or indirectly counsels, promotes, encourages or urges the doing of a terrorist act; or
 - (b) it directly or indirectly provides instruction on the doing of a terrorist act; or
 - (c) it directly praises the doing of a terrorist act in circumstances where there is a substantial risk that such praise might have the effect of leading a person (regardless of his or her age or any mental impairment (within the meaning of section 7.3 of the *Criminal Code*) that the person might suffer) to engage in a terrorist act.
- (3) A publication, film or computer game does not advocate the doing of a terrorist act if it depicts or describes a terrorist act, but the depiction or description could reasonably be considered to be done merely as part of public discussion or debate or as entertainment or satire.
- (4) In this section:

terrorist act has the meaning given by section 100.1 of the *Criminal Code* (no matter where the action occurs, the threat of action is made or the action, if carried out, would occur).

Note: The definition of ***terrorist act*** in that section covers actions or threats of actions.

11 Matters to be considered in classification

The matters to be taken into account in making a decision on the classification of a publication, a film or a computer game include:

- (a) the standards of morality, decency and propriety generally accepted by reasonable adults; and
- (b) the literary, artistic or educational merit (if any) of the publication, film or computer game; and
- (c) the general character of the publication, film or computer game, including whether it is of a medical, legal or scientific character; and
- (d) the persons or class of persons to or amongst whom it is published or is intended or likely to be published.

12 Classification guidelines

- (1) The Minister may, with the agreement of each participating Minister, determine guidelines to assist in applying the criteria in the Code.
- (2) The Minister must cause a copy of the guidelines to be published in the *Gazette*.
- (3) If the Minister and each participating Minister agree to an amendment of the guidelines, the guidelines are taken to be amended accordingly.
- (4) If the guidelines are amended, the Minister must cause a copy of the amended guidelines to be published in the *Gazette*.

12A Board to determine list of consumer advice terms

- (1) The Board may, by legislative instrument, determine:
 - (a) a list of consumer advice terms, to be used in determining consumer advice for a film or computer game; and
 - (b) guidelines to assist in the use of such terms.
- (2) A determination under subsection (1) must not commence before the day that is 3 months, or such longer period prescribed by the regulations, after the day the determination is registered under the *Legislation Act 2003*.

12B Films consisting only of classified films

Despite any other provision of this Act, a film:

- (a) that is contained on one device; and
- (b) that consists only of 2 or more classified films;

is to be treated, for the purposes of this Act, as if each of the classified films were on a separate device.

12C Considered form of publication, film or computer game to be final

In classifying a publication, film or computer game under this Act, assume that the publication, film or game will be published only in the form in which it is considered for classification.

12D Classification of publications, films or computer games containing advertisements

- (1) A publication must not be classified if it contains an advertisement that has been refused approval.
- (2) An unclassified film (the *first film*) or unclassified computer game (the *first game*) must not be classified if it:
 - (a) contains an advertisement for a film or computer game with a higher classification than the classification the first film or

- first game would be given if it did not contain the advertisement; or
- (b) contains an advertisement for an unclassified film or unclassified computer game:
 - (i) that has been assessed in accordance with section 31 or under section 33 as being likely to have a higher classification than the classification the first film or first game would be given if it did not contain the advertisement; or
 - (ii) the likely classification of which has not been assessed in accordance with section 31 or under section 33; or
 - (c) contains an advertisement that has been refused approval.
- (3) Subsection (1) or (2) does not prevent a publication, film or computer game from being classified by the Board if the application for the classification is an enforcement application.

Division 2—Classification by the Board

Subdivision A—Classification on application to the Board

12E Classification of publications, films and computer games by the Board

A person may apply to the Board for the classification of a publication, film or a computer game for the Australian Capital Territory.

13 Applications for classification of publications

- (1) An application for classification of a publication (other than an enforcement application—see section 22A) must be:
 - (a) in writing; and
 - (b) made in a form approved by the Director in writing; and
 - (c) signed by or on behalf of the applicant; and
 - (d) accompanied by:
 - (i) the prescribed fee for that category of publication; and
 - (ii) a copy of the publication.
- Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.
- (2) If an application is made for classification of a publication that is an issue of a periodical (the *original issue*), the applicant may request that the classification granted for the original issue apply also to all or some future issues.
- (3) The Board may, if the applicant pays the prescribed fee (if any), declare that the classification granted for the original issue applies also to:
 - (a) all future issues; or
 - (b) a specified number of future issues; or
 - (c) all future issues published within a specified period.

- (4) In deciding whether to make a declaration under subsection (3), the Board must have regard to written principles determined by the Director and agreed to by the Minister. The Minister may only agree to the principles if the Minister has consulted the participating Ministers about them.
- (5) If the Board makes a declaration under subsection (3) for some or all future issues of a publication and the Board is of the opinion that an issue of the publication covered by the declaration:
 - (a) contains material that, if the issue were being classified separately, would cause it to be classified with a higher classification than the original issue; or
 - (b) contains an advertisement that has been refused approval;the Board must revoke the declaration so far as it affects that issue and any future issues. The Board must also revoke approval of any approved advertisement for those issues of the publication.

13A Conditions of certain classifications for publications

- (1) The Board may, if it classifies a publication Unrestricted, impose a condition that it not be sold, displayed for sale or delivered unless it is contained in a sealed package.
- (2) The Board may, if it classifies a publication Category 1 restricted, impose a condition that it not be sold, displayed for sale or delivered unless it is contained in a sealed package made of plain, opaque material.

14 Applications for classification of films

General rules

- (1) An application for classification of a film (other than an enforcement application—see section 22A) must be:
 - (a) in writing; and
 - (b) made in a form approved by the Director in writing; and
 - (c) signed by or on behalf of the applicant; and
 - (d) accompanied by:

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- (ia) a copy of the film; and
- (i) the prescribed fee for that category of film; and
- (ii) an adequate written synopsis of the film in English that includes a statement or summary of any incidents, or of the plot, depicted or intended to be depicted by the film.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

- (2) An application for classification of a film may be accompanied by a copy of any advertisement that is proposed to be used to advertise the film.

Additional rule for films comprising computer generated images

- (4) If:
 - (a) an application is made for classification of a film (other than an enforcement application—see section 22A) that comprises a recording from which a computer generated image can be produced; and
 - (b) the recording enables a person using it to choose from 2 or more visual images the image that will be viewed;the application must include particulars of any contentious material in the film and of the means by which access to that material may be gained.
- (4A) Subsection (4) does not apply to an application for the classification of a film if the application is made only because the film became unclassified under section 21 because of a modification that consists only of a change to the title of the film.

Additional rules for films comprising classified films, exempt films and additional content

- (5) If:
 - (a) an application is for classification of a film that comprises:
 - (i) one or more classified films and additional content; or
 - (ii) one or more classified films, one or more exempt films and additional content; or

- (iii) one or more exempt films and additional content; and
 - (b) the applicant is of the opinion that the film would, if classified, be classified at a particular classification that is R 18+ or a lower classification; and
 - (c) a notice under section 22H is not in force in relation to the applicant;
- the applicant may also submit with the application an assessment of the additional content prepared by an additional content assessor and signed by, or on behalf of, the applicant.
- (6) An assessment under subsection (5) must:
 - (a) if the film includes one classified film—describe, and report on the impact of, any classifiable elements in the additional content that are at the same or higher level as the classified film; and
 - (b) if the film includes more than one classified film—describe, and report on the impact of, any classifiable elements in the additional content that are at the same or higher level as the classified film with the highest classification; and
 - (c) if the film does not include a classified film—describe, and report on the impact of, all classifiable elements in the additional content; and
 - (d) recommend a classification of the additional content; and
 - (e) recommend consumer advice appropriate to the additional content; and
 - (f) deal with any other matter prescribed by the regulations.
- (7) If the Director or the Board disagrees with the recommended classification of the additional content, the Director must give a notice in writing to the applicant stating the particulars of the disagreement.
- (8) If any of the following paragraphs applies in relation to the film, the notice under subsection (7) must also invite the applicant to make, within 14 days after receiving the notice, any additional submissions the applicant may wish to make before the Board makes a decision on the application:

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- (a) if the film includes one classified film—the Director or the Board is of the opinion that the film would, if classified, be classified at a higher classification than the classified film;
- (b) if the film includes more than one classified film—the Director or the Board is of the opinion that the film would, if classified, be classified at a higher classification than the classified film with the highest classification;
- (c) the film does not include a classified film.

15 Discretion of Board

(1) If:

- (a) an application is made for the classification as a film of a recording that contains a computer generated image; and
- (b) the Board is of the opinion that the recording is more appropriately dealt with as a computer game having regard to:
 - (i) the definition of **computer game** in section 5A; and
 - (ii) the degree of interactivity involved; and
 - (iii) the nature of the visual images produced;

the Board must decline to deal with the application.

(1A) If:

- (a) an application is made for the classification of material as a computer game; and
- (b) the Board is of the opinion that the material is more appropriately dealt with as a film having regard to:
 - (i) the definition of **film** in section 5; and
 - (ii) whether, or the extent to which, the material is or involves an interactive game;

the Board must decline to deal with the application.

(2) If the Board declines to deal with the application under this section, the Director must, within 14 days after the decision is made:

- (a) notify the applicant in writing of the decision and of the reasons for the decision; and

- (b) if the application is not an enforcement application—invite the applicant to provide the additional material that is necessary for an application for classification of a computer game or of a film, as the case requires.
- (3) If the application is not an enforcement application, the Board must deal with the application as an application for classification of a computer game or of a film, as the case requires, after receiving the additional material and fee required.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

- (4) If the application is an enforcement application, the Board must deal with the application as an application for classification of a computer game or of a film, as the case requires, after receiving the applicant's request that the Board do so. The applicant must pay any additional fee on or after making the request.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

16 Board may decline to deal with application if more than one work involved

- (1) If:
 - (a) an application is made for classification of a film or computer game; and
 - (b) the film or game is contained on more than one device and each device contains a separate work;the Board may decline to deal with the application.
- (2) If the Board declines to deal with the application under this section, the Director must, within 14 days after the decision is made:
 - (a) notify the applicant in writing of the decision and of the reasons for the decision; and
 - (b) invite the applicant to submit an application for classification of each work as a separate film or computer game.

17 Applications for classification of computer games

- (1) An application for classification of a computer game (other than an enforcement application—see section 22A) must be:
 - (a) in writing; and
 - (b) made in a form approved by the Director in writing; and
 - (c) signed by or on behalf of the applicant; and
 - (ca) accompanied by a copy of the game unless the game is an amusement or circuit board game that, in the opinion of the Board, is physically impracticable to submit to the Board's premises for classification; and
 - (cb) if the application is for classification of a computer game that is an add-on—accompanied by a copy of the computer game into which the add-on is capable of generating new elements or additional levels; and
 - (d) accompanied by the prescribed fee for that category of game; and
 - (e) accompanied by a document setting out:
 - (i) the title of the game; and
 - (ii) the year of production; and
 - (iii) the name of the publisher; and
 - (iv) the country of origin; and
 - (v) a description of game play.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

- (2) If any part of a computer game is likely to be regarded as containing contentious material, the application must also be accompanied by:
 - (a) particulars of that material and of the means by which access to it may be gained; or
 - (b) a separate recording of that material.
- (2AA) Subsection (2) does not apply to an application for the classification of a computer game if the application is made only because the computer game became unclassified under section 21

because of a modification that consists only of a change to the title of the computer game.

(2A) If the application is for a computer game that is an add-on, the Board must classify the add-on with the computer game into which the add-on is capable of generating new elements or additional levels.

(3) If:

- (a) the applicant is of the opinion that the game would, if classified, be classified G, PG or M; and
- (b) a notice under section 17C is not in force in relation to the applicant;

the applicant may also submit with the application:

- (c) an assessment of the computer game, signed by or on behalf of the applicant and prepared by a person authorised by the Director for the purpose; and
- (d) a copy of any advertisement that is proposed to be used to advertise the game.

(3A) An assessment under subsection (3) must:

- (a) describe, and report on the impact of, any classifiable elements in the game; and
- (b) recommend a classification of the game; and
- (c) recommend consumer advice appropriate to the game.

(4) If the Director or the Board disagrees with the recommended classification, the Director must give a notice in writing to the applicant:

- (a) stating the particulars of the disagreement; and
- (b) inviting the applicant to make, within 14 days after receiving the notice, any additional submissions the applicant may wish to make before the Board makes a decision on the application.

Subdivision B—Authorised assessors of computer games

17AA Authorisation to assess computer games

- (1) Subject to subsection (2), the Director may, in writing, authorise a person for the purpose of subsection 17(3) if the person has completed training approved by the Director in the making of assessments.
- (2) The Director must not authorise a person for the purposes of subsection 17(3) if a notice under section 17B, 17C, 22F, 22H or 22Q is in force in relation to the person.

17A Revocation of authorisation to assess certain computer games

- (1) The Director may revoke an authorisation given to a person for the purpose of subsection 17(3) if the Director is satisfied that one or more of the conditions mentioned in subsection (2) apply to the person.
- (2) The conditions are as follows:
 - (a) the person has prepared an assessment of a computer game that contains classifiable elements that:
 - (i) were not brought to the Board's attention in accordance with paragraph 17(3A)(a) before the classification was made; or
 - (ii) were brought to the Board's attention in accordance with paragraph 17(3A)(a) before the classification was made but the assessment of the elements was misleading, incorrect or grossly inadequate;
 - (b) if the Director has requested that the person complete further training approved by the Director in the making of assessments of computer games—the person has not completed the training;
 - (c) the person has prepared at least 2 assessments under subsection 17(3) which contain misleading, incorrect or grossly inadequate information;
 - (d) any other conditions prescribed by the regulations.

Section 17B

Note: The regulations may prescribe circumstances in which an assessment is taken to be misleading, incorrect or grossly inadequate, or to contain misleading, incorrect or grossly inadequate information: see subsection 93(2).

17B Barring notice to assessors of certain computer games

- (1) The Director may give a written notice to a person if the Director is satisfied that:
 - (a) both of the following apply:
 - (i) the Board classified a computer game taking into account an assessment of the computer game prepared by the person;
 - (ii) the Board has revoked the classification of the game under section 21A or 21AC; or
 - (b) the person has prepared at least 2 assessments under subsection 17(3) which contain misleading, incorrect or grossly inadequate information.

Note 1: If the Director gives a notice to a person under this subsection, the person cannot be authorised to prepare assessments of computer games while the notice remains in force: see subsection 17AA(2).

Note 2: The regulations may prescribe circumstances in which an assessment is taken to contain misleading, incorrect or grossly inadequate information: see subsection 93(2).

- (2) The notice takes effect from the date specified in the notice and continues in force for the period specified in the notice. The period must not exceed 3 years.

17C Barring notice to applicant for classification of computer games

- (1) The Director may give a written notice to a person if:
 - (a) the person has submitted at least 2 applications that were accompanied by assessments under subsection 17(3); and
 - (b) the assessments contained misleading, incorrect or grossly inadequate information; and

Section 17D

- (c) as a result of those assessments, the Director revoked the authorisation of the person who prepared them (see section 17A).

Note 1: If the Director gives a notice to a person under this subsection, the person cannot submit an assessment of a computer game with an application for classification of the game while the notice remains in force: see subsection 17(3).

Note 2: The regulations may prescribe circumstances in which an assessment is taken to contain misleading, incorrect or grossly inadequate information: see subsection 93(2).

- (2) The notice takes effect from the date specified in the notice and continues in force for the period specified in the notice. The period must not exceed 3 years.

17D Review by ART

Applications may be made to the Administrative Review Tribunal for review of decisions of the Director under section 17A, 17B or 17C.

Subdivision C—Consumer advice and other matters

19 Screening of films and demonstration of computer games before classification

- (1) The Board may decline to deal with an application for classification of a film or a computer game, or decline to deal further with the application, unless:
- (a) the applicant:
 - (i) provides a copy of the film or game for screening or demonstration before the Board; or
 - (ii) for an amusement or circuit board game referred to in paragraph 17(1)(ca) or subsection 22A(3)—allows the Board access to the game; and
 - (b) in the opinion of the Board, the copy of the film or game provided is complete and is adequate to allow a proper consideration of the application.

- (1A) The Board may decline to deal with an application for classification of an interactive film, or decline to deal further with the application, unless the applicant demonstrates the film before the Board.
- (2) The Board may decline to deal with an application for classification of a computer game, or decline to deal further with the application, unless the applicant demonstrates the computer game before the Board.
- (3) The Director must notify the applicant in writing of a decision under subsection (1), (1A) or (2).
- (4) The applicant and not more than 4 representatives of the applicant, and any other persons approved by the Director, are entitled to be present at a screening or demonstration.
- (5) A screening or demonstration must take place at a reasonable time and place specified by the Director.
- (6) The Director may keep the copy of the film or game or, if the Director and the applicant agree, another copy of the film or game, for as long as the Director requires.
- (7) Neither the Commonwealth nor a member is liable for any damage caused to a copy of a film or a computer game as a result of a screening or a demonstration.

20 Board to decide consumer advice for publications, films and computer games

- (1) If the Board:
 - (a) classifies a film G, PG, M, MA 15+, R 18+ or X 18+; or
 - (b) classifies a computer game G, PG, M, MA 15+ or R 18+;it must determine consumer advice giving information about the content of the film or game.
- (2) If the Board classifies a publication Unrestricted, the Board may determine consumer advice giving information about the content of the publication.

Division 2A—Modified films and computer games

20A Modifications of unclassified films and computer games that are later classified

- (1) If:
 - (a) a film or computer game:
 - (i) is modified; and
 - (ii) is classified, in unmodified form, at a later time; and
 - (b) the modification is of a kind covered by subsection (2);the film or computer game, as modified, is taken from that later time to have the same classification as the classified film or classified computer game.
- (2) This subsection covers the following modifications:
 - (a) including or removing an advertisement, other than an advertisement to which section 12D applies;
 - (b) for a film—the addition or removal of navigation functions;
 - (c) for a film—the addition or removal of material which:
 - (i) provides a description or translation of the audio or visual content of the film; and
 - (ii) would not be likely to cause the film, as modified, to be given a higher classification than the classified film;
 - (d) a format change from 2D to 3D (or vice versa), if the format change would not be likely to cause the film or computer game, as modified, to be given a different classification to the classified film or classified computer game;
 - (e) modifications of a kind prescribed in a legislative instrument made by the Minister for the purposes of this paragraph.

21 Declassification of classified films or computer games that are modified

- (1) Subject to subsection (2), if a classified film or a classified computer game is modified, the film or game, as modified, becomes unclassified when the modification is made.
- (2) Subsection (1) does not apply to a modification that consists of:
 - (a) including or removing an advertisement, other than an advertisement to which section 12D applies; or
 - (b) for an imported film or computer game that was in a form that cannot be modified and has subsequently been converted to a form that can be modified—removing, from the film or game, material that was advertising referred to in paragraph (f) of the definition of *advertisement* in section 5; or
 - (ba) a format change from 2D to 3D (or vice versa), if the format change would not be likely to cause the film or computer game, as modified, to be given a different classification to the classified film or classified computer game; or
 - (c) for a classified film—the addition or removal of navigation functions; or
 - (d) for a classified film—the addition or removal of material which:
 - (i) provides a description or translation of the audio or visual content of the film; and
 - (ii) would not be likely to cause the film to be given a higher classification.

Example: A film which has been classified has captions added for the hearing impaired. This addition would not cause the film to become unclassified under subsection 21(1).

- (3) Subsection (1) does not apply to a modification of a kind prescribed in a legislative instrument made by the Minister for the purposes of this subsection.

Division 2B—Revocation by the Board of classifications involving assessments of additional content or authorised assessors

21A Revocation of classification of films or computer games that are found to contain contentious material

If the Board is of the opinion that:

- (a) an interactive film, or computer game, classified on application under section 14 or 17 contains contentious material (whether activated through use of a code or otherwise) that was not brought to the Board's attention in accordance with subsection 14(4) or 17(2) before the classification was made; and
- (b) if the Board had been aware of the material before the classification was made, it would have given the film or game a different classification;

the Board must revoke the classification, and must also revoke approval of any approved advertisement for the film or game.

21AA Revocation of classification of films containing additional content

The Board must revoke the classification of a film that has been classified taking into account an assessment prepared by an additional content assessor under subsection 14(5) if it is satisfied that:

- (a) the additional content contains any classifiable elements that:
 - (i) were not brought to the Board's attention in accordance with paragraph 14(6)(a), (b) or (c) before the classification was made; or
 - (ii) were brought to the Board's attention in accordance with paragraph 14(6)(a), (b) or (c) before the classification was made but the assessment of the

elements was misleading, incorrect or grossly inadequate; and

- (b) if the Board had been aware of the matters mentioned in subparagraph (a)(i) or (ii) before the classification was made, it would have given the film a different classification.

Note: The regulations may prescribe circumstances in which an assessment is taken to be misleading, incorrect or grossly inadequate: see subsection 93(2).

21AC Revocation of classification of computer games if assessment misleading etc.

The Board must revoke the classification of a computer game that has been classified taking into account an assessment prepared under subsection 17(3) if the Board is satisfied that:

- (a) the computer game contains any classifiable elements that:
- (i) were not brought to the Board's attention in accordance with paragraph 17(3A)(a) before the classification was made; or
 - (ii) were brought to the Board's attention in accordance with paragraph 17(3A)(a) before the classification was made but the assessment of the elements was misleading, incorrect or grossly inadequate; and
- (b) if the Board had been aware of the matters mentioned in subparagraph (a)(i) or (ii) before the classification was made, it would have given the game a different classification.

Note: The regulations may prescribe circumstances in which an assessment is taken to be misleading, incorrect or grossly inadequate: see subsection 93(2).

Division 2C—Enforcement applications for classification by the Board

22A Applications for classification for enforcement purposes

- (1) An application to the Board for classification of a publication, film or computer game that is an enforcement application must be:
 - (a) in writing; and
 - (b) made in a form approved by the Director in writing; and
 - (c) signed by or on behalf of the applicant; and
 - (d) accompanied by a copy of the publication, film or computer game.

- (2) The applicant must pay the prescribed fee for the application. However, the fee need not accompany the application.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

- (3) An enforcement application for classification of a computer game does not have to be accompanied by a copy of the game if the game is an amusement or circuit board game that, in the opinion of the Board, is physically impracticable to submit to the Board's premises for classification.

Division 2D—Validation of Board decisions

22B Classification of a publication, film or computer game that may be the same as or similar to a classified item

- (1) The Board may proceed to classify a publication, film or computer game (the *new item*) if:
 - (a) an application is made for its classification; and
 - (b) the Board is of the opinion that the new item may be the same as or similar to another publication, film or game that has already been classified (the *classified item*); and
 - (c) the Board does not have a copy of the classified item and a copy is not available to it; and
 - (d) the Board is not able to ascertain from its records whether the items are identical.
- (2) A classification by the Board of the new item is valid even though the Board may discover, after the classification of the new item, that it is the same as the classified item.
- (3) If:
 - (a) the Board obtains a copy of the classified item; and
 - (b) the Board decides that it is the same as the new item but:
 - (i) the classifications for the classified item and the new item are different; or
 - (ii) the consumer advice for the classified item and the new item are different;the Board must revoke the classification or consumer advice for the classified item.

22C Validation of Board decisions etc. on applications by law enforcement agencies

- (1) A decision (the *original decision*) made by the Board (whether before or after the commencement of this section) on an application:
 - (a) made by or on behalf of a law enforcement agency of the Commonwealth, a State or a Territory; and
 - (b) that did not satisfy the requirements of this Act for the making of the application;is as valid, and is taken always to have been as valid, as it would have been if the application had satisfied those requirements.
- (2) Any later decision made, or any later action taken by, the Board, the Review Board, the Director or the Convenor under this Act (whether before or after the commencement of this section) on the basis of the original decision is as valid, and is taken always to have been as valid, as it would have been if the original decision had been made on an application that satisfied the requirements of this Act for the making of the application.

Division 2E—Classification by approved classification tools

Subdivision A—Approved classification tools

22CA Approved classification tools

- (1) The Minister may approve a tool (a *classification tool*) for the purposes of classifying one or more of the following (the *relevant material*):
 - (a) publications;
 - (b) films;
 - (c) computer games.
- (2) A tool approved under subsection (1) is an *approved classification tool* for the relevant material.
- (3) An approval may be given subject to the conditions specified in the approval.
- (4) In deciding whether to approve a classification tool under subsection (1), the Minister must have regard to any matters specified in written guidelines made by the Minister for the purposes of this subsection.
- (5) The Minister must not approve a classification tool under subsection (1) unless the tool will:
 - (a) produce a decision on the classification of the relevant material for the Australian Capital Territory; and
 - (b) determine consumer advice giving information about the content of the relevant material; and
 - (c) notify the decision and the consumer advice to the Director.
- (6) An approval under subsection (1):
 - (a) must be in writing; and
 - (b) is not a legislative instrument; and
 - (c) must be published on the Department's website.

Part 2 Classification

Division 2E Classification by approved classification tools

Section 22CB

- (7) Guidelines made under subsection (4) are not a legislative instrument.
- (8) Guidelines made under subsection (4) must be published on the Department's website.

22CB Variation or revocation of approval

- (1) The Minister may vary or revoke an approval under subsection 22CA(1) if the Minister is satisfied that it is appropriate to do so, having regard to:
 - (a) the matters specified in guidelines made for the purposes of subsection 22CA(4); and
 - (b) any other matter the Minister considers relevant.
- (2) A variation or revocation of an approval takes effect at the time specified in the instrument varying or revoking the approval (which must not be a time before the instrument is made).
- (3) A variation or revocation of an approval:
 - (a) must be in writing; and
 - (b) must be published on the Department's website.

Subdivision B—Contracts etc. in relation to approved classification tools

22CC Contracts etc. in relation to approved classification tools

The Minister may, on behalf of the Commonwealth, enter into a contract, arrangement or understanding for purposes relating to the development, operation or availability for use of a tool that may be approved under section 22CA (approved classification tools).

22CD Involvement in a corporation etc. in relation to approved classification tools

- (1) The Minister may, on behalf of the Commonwealth:
 - (a) participate in the formation of a corporation; or

- (b) become a member of a corporation;
for purposes relating to the development, operation or availability
for use of a tool that may be approved under section 22CA
(approved classification tools).
- (2) The Minister may, on behalf of the Commonwealth, appoint a
person (whether or not engaged under the *Public Service Act 1999*)
to a body or organisation (whether within or outside Australia) for
purposes relating to the development, operation or availability for
use of a tool that may be approved under section 22CA (approved
classification tools).

22CE Executive power of the Commonwealth

This Subdivision does not, by implication, limit the executive
power of the Commonwealth.

Subdivision C—Classification by approved classification tools

22CF Classification by approved classification tools

- (1) If:
 - (a) a publication, film or computer game is unclassified; and
 - (b) there is an approved classification tool for the publication,
film or computer game; and
 - (c) the approved classification tool is used to produce a decision,
for the Australian Capital Territory, on the classification of
the publication, film or computer game; and
 - (d) the prescribed fee (if any) has been paid in relation to the
decision;the decision is taken, for the purposes of this Act, to be a decision
of the Board to classify the publication, film or computer game.
- (2) The following provisions of this Act do not apply in relation to the
decision:
 - (a) Divisions 2, 2B, 2C and 2D of Part 2;
 - (b) Division 5 of Part 2.

Part 2 Classification

Division 2E Classification by approved classification tools

Section 22CG

- (3) To avoid doubt, subsection (1) does not apply to a decision made by the operation of an approved classification tool if the decision does not comply with a condition to which the approval is subject under subsection 22CA(3).
- (4) The decision takes effect when it is included in:
 - (a) the register, known as the National Classification Database, maintained by the Department; or
 - (b) any replacement register.
- (5) Consumer advice for the publication, film or computer game (as the case may be) that is determined by the approved classification tool is taken to be consumer advice determined under section 20 by the Board for the publication, film or computer game (as the case may be).

Note: An approved classification tool must determine consumer advice: see paragraph 22CA(5)(b).

22CG Approved classification tool certificates

- (1) If a publication, film or computer game (the *classified material*):
 - (a) is classified; and
 - (b) is taken to have been so classified by the Board because of the operation of section 22CF in relation to a decision of an approved classification tool;a person may apply to the Director for a certificate (an *approved classification tool certificate*) for the classified material.
 - (2) An application under subsection (1) must:
 - (a) be in a form approved, in writing, by the Director; and
 - (b) be accompanied by the prescribed fee (if any).
- Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.
- (3) On application under subsection (1), the Director must issue an approved classification tool certificate for the classified material.

- (4) The certificate must include the determined markings for the classification given to the classified material.

22CH Revocation of classification by approved classification tool

Revocation of classification

- (1) If:
- (a) a decision made by the operation of an approved classification tool in relation to a publication, film or computer game (the **relevant material**) is taken (because of the operation of section 22CF) to be a decision of the Board to classify the relevant material; and
 - (b) the Board is of the opinion that:
 - (i) had the relevant material been classified by the Board otherwise than because of the operation of that section, the Board would have given the material a different classification; or
 - (ii) the consumer advice for the relevant material is misleading, incorrect or grossly inadequate; or
 - (iii) the consumer advice for the relevant material uses a consumer advice term that is not included in the list determined by the Board under section 12A that was in force at the time the consumer advice was determined;
- the Board may revoke the classification.

Note: The regulations may prescribe circumstances in which consumer advice is taken to be misleading, incorrect or grossly inadequate: see subsection 93(2).

- (1A) In determining whether to revoke under subsection (1) a classification made by the operation of an approved classification tool, the Board must have regard to whether the tool is operating in accordance with any contract, arrangement or understanding entered into under section 22CC in relation to the tool.
- (2) The Board may exercise the power under subsection (1):
- (a) on its own initiative; or
 - (b) on application.

Part 2 Classification

Division 2E Classification by approved classification tools

Section 22CH

- (3) An application under paragraph (2)(b) must:
- (a) be in a form approved, in writing, by the Director; and
 - (b) be made:
 - (i) within 3 months after the day the decision made by the operation of the approved classification tool takes effect; or
 - (ii) if another period is specified in a determination under subsection (8)—within that longer period; and
 - (c) if a class of persons is specified in a determination under subsection (8)—be made by a person included in that class; and
 - (d) be accompanied by the prescribed fee (if any).

Note: For when the decision made by the operation of the approved classification tool takes effect, see subsection 22CF(4).

Classification after revocation

- (4) If the Board decides to revoke the classification of relevant material under subsection (1), the Board must classify the relevant material.
- (5) A decision of the Board to classify the relevant material, as referred to in subsection (4), takes effect when it is included in either:
- (a) the register, known as the National Classification Database, maintained by the Department; or
 - (b) any replacement register.

When revocation of classification takes effect

- (7) The revocation of the classification of relevant material under subsection (1) takes effect immediately before the decision to classify the material, as referred to in subsection (4), takes effect.

Ministerial determination

- (8) The Minister may, by legislative instrument, determine either or both of the following:

- (a) a specified period for the purposes of subparagraph (3)(b)(ii);
- (b) a specified class of persons for the purposes of paragraph (3)(c).

Subdivision D—Other

22CJ Delegation by the Minister

- (1) The Minister may, by written instrument, delegate any or all of the Minister's powers or functions under this Division, other than the Minister's power to make guidelines for the purposes of subsection 22CA(4), to the Secretary of the Department.
- (2) In exercising powers or performing functions under a delegation, the Secretary must comply with any directions of the Minister.

Division 2F—Additional content assessors

Subdivision A—Additional content assessors

22D Additional content assessors

- (1) Subject to subsection (2), the Director may, in writing, authorise a person to prepare assessments of additional content under subsection 14(5).
- (2) The Director must not authorise a person if:
 - (a) a notice under section 17B, 17C, 22F, 22H or 22Q is in force in relation to the person; or
 - (b) the person has not completed training approved by the Director in the making of assessments.

22E Revocation of additional content assessor status

- (1) The Director may, in writing, revoke an authorisation in relation to an additional content assessor if the Director is satisfied that one or more of the conditions mentioned in subsection (2) apply to the additional content assessor.
- (2) The conditions are as follows:
 - (a) the additional content assessor has prepared an assessment of the additional content in a film and the additional content contains classifiable elements that:
 - (i) were not brought to the Board's attention in accordance with paragraph 14(6)(a), (b) or (c) before the classification was made; or
 - (ii) were brought to the Board's attention in accordance with paragraph 14(6)(a), (b) or (c) before the classification was made but the assessment of the elements was misleading, incorrect or grossly inadequate;
 - (b) if the Director has requested the additional content assessor complete further training approved by the Director in the

making of assessments—the additional content assessor has not completed the training;

- (c) the additional content assessor has prepared at least two assessments under subsection 14(5) which contain misleading, incorrect or grossly inadequate information;
- (d) any other conditions prescribed by the regulations.

Note: The regulations may prescribe circumstances in which an assessment is taken to be misleading, incorrect or grossly inadequate, or to contain misleading, incorrect or grossly inadequate information: see subsection 93(2).

22F Barring notice to additional content assessor

- (1) The Director may give a written notice to a person if the Director is satisfied that:
 - (a) both of the following apply:
 - (i) the Board classified a film taking into account an assessment of the additional content in the film prepared by the person;
 - (ii) the Board has revoked the classification of the film under section 21AA; or
 - (b) the person has prepared at least two assessments under subsection 14(5) which contain misleading, incorrect or grossly inadequate information; or
 - (c) the person meets any other condition set out in the regulations.

Note 1: If the Director gives a notice to a person under this subsection, the person cannot be authorised to prepare assessments of additional content while the notice remains in force: see section 22D.

Note 2: The regulations may prescribe circumstances in which an assessment is taken to contain misleading, incorrect or grossly inadequate information: see subsection 93(2).

- (2) The notice takes effect from the date specified in the notice and continues in force for the period specified in the notice. The period must not exceed 3 years.

22G Review by ART

An application may be made to the Administrative Review Tribunal for review of a decision of the Director under subsection 22E(1) or 22F(1).

Subdivision B—Barring notices to applicants

22H Barring notice to applicant

- (1) The Director may give a written notice to a person if:
- (a) the person has submitted at least two applications that were accompanied by assessments under subsection 14(5); and
 - (b) the assessments contained misleading, incorrect or grossly inadequate information; and
 - (c) as a result of those assessments, the Director revoked the authorisation of the additional content assessors who prepared them.
- Note 1: If the Director gives a notice to a person under this subsection, the person cannot submit an assessment of additional content with an application for classification of a film while the notice remains in force: see subsection 14(5).
- Note 2: The regulations may prescribe circumstances in which an assessment is taken to contain misleading, incorrect or grossly inadequate information: see subsection 93(2).
- (2) The notice takes effect from the date specified in the notice and continues in force for the period specified in the notice. The period must not exceed 3 years.

22J Review by ART

An application may be made to the Administrative Review Tribunal for review of a decision of the Director under subsection 22H(1).

Division 2G—Classification by accredited person

Subdivision A—Classification

22K An accredited person may classify a film or computer game

- (1) Subject to subsection (4), an accredited person may, on request of the publisher or proposed publisher of a film or computer game, classify the film or computer game for the Australian Capital Territory.

Note: If the accredited person has been requested to complete further training under section 22N, the accredited person may not classify films or computer games until the person has completed the training: see subsection 22N(2).

- (2) The classification takes effect when it is included in:
 - (a) the register, known as the National Classification Database, maintained by the Department; or
 - (b) any replacement register.
- (3) The accredited person must also determine consumer advice giving information about the content of the film or game.

RC or X 18+ material excluded

- (4) If a film or computer game, if classified, would be likely to be classified RC or X 18+, an accredited person may not classify the film or computer game.

22L Board may revoke classification

Revocation of classification

- (1) If:
 - (a) an accredited person has classified a film or computer game; and
 - (b) the Board is of the opinion that:

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- (i) had the film or computer game been classified by the Board, the Board would have given the film or computer game a different classification; or
- (ii) the consumer advice for the film or computer game is misleading, incorrect or grossly inadequate; or
- (iii) the consumer advice for the film or computer game uses a consumer advice term that is not included in the list determined by the Board under section 12A that was in force at the time the consumer advice was determined;

the Board may revoke the classification.

Note: The regulations may prescribe circumstances in which consumer advice is taken to be misleading, incorrect or grossly inadequate: see subsection 93(2).

(2) The Board may revoke the classification:

- (a) on its own initiative; or
- (b) on request by the Minister or the Secretary of the Department; or
- (c) if an application in accordance with subsection (7) is made within 3 months after the day the classification takes effect or within such longer period specified in a determination under subsection (8)—on application.

Note: For when the classification takes effect, see subsection 22K(2).

(3) However, before the Board revokes the classification, the Director must give a notice in writing to the accredited person that:

- (a) states the grounds on which the Board is considering revoking the classification; and
- (b) invites the accredited person to make, within 7 days after receiving the notice, a submission to the Board as to why the Board should not revoke the classification.

Classification after revocation

- (4) If, after considering any submission received within that period, the Board decides to revoke the classification, the Board must classify the film or computer game.

- (5) The classification by the Board takes effect when it is included in either:
- (a) the register, known as the National Classification Database, maintained by the Department; or
 - (b) any replacement register.

When revocation of classification takes effect

- (6) The revocation of the classification takes effect immediately before the classification by the Board takes effect.

Application for revocation

- (7) For the purposes of paragraph (2)(c) an application must:
- (a) be in a form approved, in writing, by the Director; and
 - (b) if a class of persons is specified in a determination under subsection (8)—be made by a person included in that class; and
 - (c) be accompanied by the prescribed fee (if any).
- (8) The Secretary of the Department may, by legislative instrument, determine either or both of the following:
- (a) a specified period for the purposes of paragraph (2)(c);
 - (b) a specified class of persons for the purposes of paragraph (7)(b).

Subdivision B—Accreditation

22M Secretary may accredit a person to classify films and computer games

- (1) A person may apply to the Secretary of the Department for accreditation to classify films and computer games for the Australian Capital Territory.
- (2) The application must:
- (a) be in a form approved, in writing, by the Secretary; and

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- (b) be accompanied by a declaration made by the person to the effect that the person:
 - (i) has not been convicted of an offence against a law of the Commonwealth, or a law of a State or Territory, involving fraud or dishonesty; and
 - (ii) has not been ordered to pay a pecuniary penalty for the contravention of a civil penalty provision of a law of the Commonwealth, or a law of a State or Territory, involving fraud or dishonesty.
- (3) The Secretary may, in writing, accredit the person to classify films and computer games for the Australian Capital Territory for a specified period, if:
 - (a) the person has made an application in accordance with subsection (2); and
 - (b) the person has, within the previous 12 months, completed approved training in classification; and
 - (c) the person has paid the accreditation fee (if any) that relates to the specified period; and
 - (d) there is no notice under section 17B, 17C, 22F, 22H or 22Q in force in relation to the person; and
 - (e) the Secretary is not aware of any reason why the person is not a suitable person to classify films and computer games.

Note 1: For the approval of training, see section 22S.

Note 2: If the person has been requested to complete further training under 22N, the Secretary may not accredit the person for a further period until the person has completed the training: see subsection 22N(2).

Accreditation fee

- (4) For the purposes of paragraph (3)(c), the regulations may prescribe an accreditation fee in relation to a period to be paid by an accredited person for services that the Commonwealth (including the Board and the Secretary of the Department) provides in administering the classification of films and computer games by accredited persons under this Act.

- (5) A fee prescribed under subsection (4) must not be such as to amount to taxation.

Spent convictions scheme not affected

- (6) Nothing in this section affects the operation of Part VIIC of the *Crimes Act 1914* (which includes provisions that, in certain circumstances, relieve persons from the requirement to disclose spent convictions and require persons aware of such convictions to disregard them).

22N Secretary may request accredited person complete further training

- (1) The Secretary of the Department may, in writing, request that an accredited person complete further approved training in classification within a specified period, if:
- (a) during the previous 12 months, the Board has revoked 2 or more classifications by the person; or
 - (b) the Secretary considers that the training is otherwise necessary or desirable to ensure that the person is adequately trained and competent to perform the functions of an accredited person under this Act.

Note: For the approval of training, see section 22S.

- (2) Until the person has completed the training:
- (a) the person may not classify a film or computer game under section 22K; and
 - (b) the Secretary may not accredit the person to classify films and computer games.

Note: If the person does not complete the further training with the specified period, the person's accreditation may be revoked under section 22P.

22P Secretary may revoke accreditation

- (1) The Secretary of the Department may, in writing, revoke the accreditation of a person to classify films and computer games if

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the Secretary is satisfied that one or more of the conditions mentioned in subsection (2) apply to the person.

- (2) The conditions are as follows:
- (a) during the previous 12 months, the Board has revoked 3 or more classifications by the person;
 - (b) if the Secretary has, under section 22N, requested the person complete further approved training in classification within a specified period—the person has not completed the training within the specified period;
 - (c) the Secretary becomes aware of:
 - (i) the person having made a declaration under subsection 22M(2) that is false or misleading in a material particular; or
 - (ii) the person having been convicted of an offence against a law of the Commonwealth, or a law of a State or Territory, involving fraud or dishonesty; or
 - (iii) the person having been ordered to pay a pecuniary penalty for the contravention of a civil penalty provision of a law of the Commonwealth, or a law of a State or Territory, involving fraud or dishonesty; or
 - (iv) the person having purported to classify a film or computer game as RC or X 18+; or
 - (v) any other reason why the person is not a suitable person to classify films and computer games;
 - (d) the Board has revoked a classification by the person of a film or computer game on the grounds that had the film or computer game been classified by the Board, the Board would have given the film or computer game a classification of RC or X 18+;
 - (e) the person meets any other condition prescribed by the regulations.
- (3) If the accreditation of a person has been revoked under subsection (1), the person may not make an application under section 22M for the next 28 days.

22Q Barring notice to accredited person

- (1) The Secretary of the Department may give a written notice to a person if the Secretary is satisfied that one or more of the conditions mentioned in subsection (2) apply to the person.
- (2) The conditions are as follows:
 - (a) the Secretary has revoked the person's accreditation under section 22P more than once;
 - (b) the Board has revoked 2 or more classifications by the person of films or computer games in the person's most recent 3 accreditation periods and at least 2 of those classifications were revoked on the grounds that:
 - (i) had the film or computer game been classified by the Board, the Board would have given the film or computer game a classification that is 2 or more levels higher or lower; or
 - (ii) had the film or computer game been classified by the Board, the Board would have given the film or computer game a classification of RC or X 18+; or
 - (iii) the consumer advice was grossly misleading, grossly incorrect or grossly inadequate;
 - (c) the Board has revoked a classification by the person of a film or computer game on the grounds that had the film or computer game been classified by the Board, the Board would have given the film or computer game a classification of RC or X 18+;
 - (d) the person has purported to classify a film or computer game as RC or X 18+;
 - (e) the Secretary is of the opinion that the person knowingly made a declaration under subsection 22M(2) that is false or misleading in a material particular;
 - (f) the person meets any other condition prescribed by the regulations.

Note 1: If the Secretary gives a notice to a person under this section, the person cannot be accredited while the notice remains in force: see paragraph 22M(3)(d).

Part 2 Classification

Division 2G Classification by accredited person

Section 22R

Note 2: The regulations may prescribe circumstances in which consumer advice is taken to be grossly misleading, grossly incorrect or grossly inadequate: see subsection 93(2).

- (3) The notice takes effect from the date specified in the notice and continues in force for the period specified in the notice. The period must not exceed 5 years.

22R Review by ART

Applications may be made to the Administrative Review Tribunal for review of the following decisions of the Secretary of the Department:

- (a) decisions to refuse to accredit persons under subsection 22M(3);
- (b) decisions under subsection 22N(1), 22P(1) or 22Q(1).

Subdivision C—Other

22S Secretary may approve training

- (1) The Secretary of the Department may approve training for the purposes of paragraph 22M(3)(b) or section 22N.
- (2) The Secretary of the Department may charge a fee specified in the regulations for providing approved training.
- (3) A fee specified under subsection (2) must not be such as to amount to taxation.

22T Delegation

- (1) The Secretary of the Department may, in writing, delegate to an SES employee, or an acting SES employee, in the Department who has responsibility for classification matters any or all of the Secretary's powers and functions under the following provisions:
 - (a) paragraph 22L(2)(b) (request for revocation of classification);
 - (b) section 22M (accreditation);

- (c) section 22N (further training);
- (d) section 22P (revocation of accreditation);
- (e) subsection 22S(1) (approved training).

Note: Sections 34AA to 34A of the *Acts Interpretation Act 1901* contain provisions relating to delegations.

- (2) In performing a delegated function or exercising a delegated power, the delegate must comply with any written directions of the Secretary.

Division 3—Submittable publications

23 Calling in submittable publications for classification

- (1) If:
- (a) the Director has reasonable grounds to believe that a publication is a submittable publication; and
 - (b) the publication is being published in the Australian Capital Territory, or the Director has reasonable grounds to believe that it will be published in the Australian Capital Territory; and
 - (c) if the publication is being published in the Australian Capital Territory—the publication is not subject to a conditional cultural exemption in relation to the publication;
- the Director may, by notice in writing given to the publisher of the publication, require the publisher to submit an application for classification of the publication, or of subsequent issues of the publication, by the Board.
- (2) The Director must cause notice of a decision under subsection (1) to be published in the *Gazette*.
- (3) A person to whom a notice under this section is given must, within 3 business days after receiving the notice, comply with the notice.
- Penalty: 20 penalty units.
- (4) An offence against subsection (3) is a strict liability offence.
- Note: For *strict liability*, see section 6.1 of the *Criminal Code*.
- (5) It is a defence to a prosecution for an offence against subsection (3) if the defendant proves that he or she did not intend to:
- (a) publish the publication in the Australian Capital Territory; or
 - (b) cause, authorise, permit or licence the publication to be published in the Australian Capital Territory.

Division 3A—Calling in films

23A Calling in films for classification

- (1) If:
- (a) the Director has reasonable grounds to believe that an unclassified film is not an exempt film; and
 - (b) the film is being published in the Australian Capital Territory, or the Director has reasonable grounds to believe that it will be published in the Australian Capital Territory; and
 - (c) if the film is being published in the Australian Capital Territory—the film is not subject to a conditional cultural exemption in relation to the publication;
- the Director may, by notice in writing given to the publisher of the film, require the publisher to submit an application for classification of the film.
- (2) The Director must cause notice of a decision under subsection (1) to be published in the *Gazette*.
- (3) A person to whom a notice under this section is given must, within 3 business days after receiving the notice, comply with the notice.
- Penalty: 20 penalty units.
- (4) An offence against subsection (3) is a strict liability offence.
- (5) It is a defence to a prosecution for an offence against subsection (3) if the defendant proves that he or she did not intend to:
- (a) publish the film in the Australian Capital Territory; or
 - (b) cause, authorise, permit or licence the film to be published in the Australian Capital Territory.

Division 4—Calling in computer games

24 Calling in computer games for classification

(1) If:

- (a) the Director has reasonable grounds to believe that a computer game is likely to contain contentious material; and
- (b) the computer game is being published in the Australian Capital Territory, or the Director has reasonable grounds to believe that it will be published in the Australian Capital Territory;

the Director may, by notice in writing given to the publisher of the game, require the publisher to submit an application for classification of the game.

(1A) If:

- (a) the Director has reasonable grounds to believe that an unclassified computer game is not an exempt computer game; and
- (b) the game is being published in the Australian Capital Territory, or the Director has reasonable grounds to believe that it will be published in the Australian Capital Territory; and
- (c) if the computer game is being published in the Australian Capital Territory—the computer game is not subject to a conditional cultural exemption in relation to the publication;

the Director may, by notice in writing given to the publisher of the game, require the publisher to submit an application for classification of the game.

(2) The Director must cause notice of a decision under subsection (1) or (1A) to be published in the *Gazette*.

(3) A person to whom a notice under this section is given must, within 3 business days after receiving the notice, comply with the notice.

Penalty: 20 penalty units.

- (4) An offence against subsection (3) is a strict liability offence.

Note: For *strict liability*, see section 6.1 of the *Criminal Code*.

- (5) It is a defence to a prosecution for an offence against subsection (3) if the defendant proves that he or she did not intend to:
- (a) publish the computer game in the Australian Capital Territory; or
 - (b) cause, authorise, permit or licence the computer game to be published in the Australian Capital Territory.

Division 5—Notice of decisions by the Board or Review Board

25 Classification certificates

- (1) The Director must issue a classification certificate for each publication, film and computer game that is classified by the Board.
- (1A) The Convenor must issue a classification certificate for each publication, film and computer game that is classified by the Review Board.
- (1B) If:
 - (a) the Director has issued a classification certificate (the *first certificate*) for a publication, film or computer game; and
 - (b) the Convenor issues a classification certificate (the *second certificate*) for the publication, film or computer game;the first certificate is taken to be revoked at the time the Convenor gives written notice to the applicant under subsection 26(3).
- (2) A classification certificate must include:
 - (a) the determined markings for the classification given to the publication, film or computer game; and
 - (b) for a film or computer game—the consumer advice for the film or game; and
 - (c) the applicant’s obligations about the display of the determined markings and consumer advice.

26 Notice of decisions

Notice of decisions by the Board

- (1) The Director must give written notice of a decision of the Board to the applicant.

- (2) If there was no applicant, or the applicant is not the person on whose application an earlier decision was made, the Director must give the notice to the persons who, in his or her opinion, have an interest in the matter, whether as a publisher of the publication, film or computer game or otherwise.

Notice of decisions by the Review Board

- (3) The Convenor must give written notice of a decision of the Review Board to:
- (a) the applicant; and
 - (b) the persons who, in the Convenor's opinion, have an interest in the matter, whether as a publisher of the publication, film or computer game or otherwise.

Time for giving notice

- (4) The notice must be given as soon as practicable, but not later than 30 days after the decision.

Certificate as notice of decision

- (5) A copy of the classification certificate is enough notice of the decision.

27 Applications for information

Applications to the Director

- (1) A person may apply to the Director for a copy of:
- (a) a classification certificate issued by the Director under subsection 25(1); or
 - (b) a notice given by the Director under subsection 26(1).
- (2) If the application is not an enforcement application, the Director must give the copy to the applicant after the applicant pays the prescribed fee.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

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- (3) If the application is an enforcement application, the Director must give the copy to the applicant after the applicant makes the application. The applicant must pay the prescribed fee on or after making the application.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

Applications to the Convenor

- (4) A person may apply to the Convenor for a copy of:
- (a) a classification certificate issued by the Convenor under subsection 25(1A); or
 - (b) a notice given by the Convenor under subsection 26(3).
- (5) If the application is not an enforcement application, the Convenor must give the copy to the applicant after the applicant pays the prescribed fee.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

- (6) If the application is an enforcement application, the Convenor must give the copy to the applicant after the applicant makes the application. The applicant must pay the prescribed fee on or after making the application.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

28 When decisions take effect

Unless this Act otherwise provides, a decision takes effect on the day on which notice of the decision is given under section 26.

Part 3—Advertising

Division 1A—Preliminary

28D Simplified outline of this Part

The Board may approve or refuse to approve advertisements for publications, films and computer games. In making a decision, the Board must take into account certain matters, including any classification guidelines.

The Director of the Board may require publishers of certain publications, films and computer games to seek approval of advertisements for that material. It is an offence to fail to comply with such a requirement.

The Minister may determine a scheme for advertising unclassified films and computer games, including specifying conditions on which such material may be advertised.

Applications may be made to the Board for an assessment of the likely classification of an unclassified film or computer game for the purpose of advertising the unclassified film or computer game.

Division 1—Approval of general advertisements

29 Approval of advertisements

- (1) The Board may approve or refuse to approve an advertisement for a publication, a film or a computer game either on an application for approval or on its own initiative. An approval of an advertisement may be subject to conditions.
- (2) An application for approval of an advertisement must be:
 - (a) in writing; and
 - (b) made in a form approved by the Director in writing; and
 - (c) signed by or on behalf of the applicant; and
 - (d) accompanied by the prescribed fee for that category of advertisement.
- (3) The matters to be taken into account in deciding whether to approve an advertisement include the matters set out in section 11 and the classification guidelines referred to in section 12.
- (4) The Board must refuse to approve an advertisement if, in the opinion of the Board, the advertisement:
 - (a) describes, depicts or otherwise deals with matters of sex, drug misuse or addiction, crime, cruelty, violence or revolting or abhorrent phenomena in such a way that it offends against the standards of morality, decency and propriety generally accepted by reasonable adults to the extent that it should not be approved; or
 - (b) depicts or describes, in a way that is likely to cause offence to a reasonable adult, a person who is, or appears to be, a child under 18 (whether the person is engaged in sexual activity or not); or
 - (c) promotes crime or violence, or incites or instructs in matters of crime or violence; or
 - (d) is used, or is likely to be used, in a way that is offensive to a reasonable adult.

- (5) The Board must refuse to approve an advertisement for a publication if the publication:
 - (a) has been classified RC; or
 - (b) is an unclassified submittable publication.
- (6) The Board must refuse to approve an advertisement for:
 - (a) a film or computer game that has been classified RC; or
 - (b) an unclassified film or unclassified computer game that, if classified, would be likely to be classified RC.

30 Calling in advertisements

- (1) The Director may, by notice in writing given to:
 - (a) the publisher of a publication that:
 - (i) the Director has reasonable grounds to believe is a submittable publication; and
 - (ii) is being published in the Australian Capital Territory, or the Director has reasonable grounds to believe will be published in the Australian Capital Territory; or
 - (b) the publisher of a film that is being published in the Australian Capital Territory, or that the Director has reasonable grounds to believe will be published in the Australian Capital Territory; or
 - (c) the publisher of a computer game that is being published in the Australian Capital Territory, or that the Director has reasonable grounds to believe will be published in the Australian Capital Territory;

require the publisher to submit to the Board for approval a copy of every advertisement used or intended to be used in connection with the publishing.
- (2) A person to whom a notice under this section is given must, within 3 business days after receiving the notice, comply with the notice.

Penalty: 20 penalty units.

- (3) An offence against subsection (2) is a strict liability offence.

Part 3 Advertising

Division 1 Approval of general advertisements

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Note: For *strict liability*, see section 6.1 of the *Criminal Code*.

- (4) It is a defence to a prosecution for an offence against subsection (2) if the defendant proves that he or she did not intend to:
- (a) publish the publication, film or computer game in the Australian Capital Territory; or
 - (b) cause, authorise, permit or licence the publication, film or computer game to be published in the Australian Capital Territory.

Division 2—Advertising of unclassified films and unclassified computer games

Subdivision A—Scheme relating to advertising

31 Scheme for advertising may be determined by legislative instrument

- (1) The Minister may, by legislative instrument, determine a scheme for the advertising of unclassified films and unclassified computer games including, but not limited to, the following:
 - (a) specifying conditions on which unclassified films and unclassified computer games may be advertised;
 - (b) providing for requirements relating to self-assessment by industry of the likely classification of unclassified films and unclassified computer games.
- (2) The conditions on which unclassified films and unclassified computer games may be advertised include, but are not limited to, conditions in relation to the following:
 - (a) messages that must be displayed on or in relation to the advertising of an unclassified film or an unclassified computer game;
 - (b) the circumstances in which an unclassified film or an unclassified computer game may be advertised with a classified film or game (including circumstances relating to the likely classification of the film or computer game);
 - (c) the time within which messages on or in relation to an advertisement for an unclassified film or an unclassified computer game must be changed after the film or computer game is classified;
 - (d) a condition that an unclassified film or an unclassified computer game may not be advertised by a person in respect of whom a barring notice of a kind mentioned in paragraph (3)(d) is in force.

- (3) Without limiting subsection (1), the scheme may:
- (a) provide for the authorisation of persons to make assessments of the likely classifications of unclassified films or unclassified computer games; and
 - (b) specify the requirements for authorisation of a kind mentioned in paragraph (a), and for continued authorisation (including the circumstances in which such authorisation may be revoked or suspended); and
 - (c) specify the basis on which an authorised person may make, amend or revoke assessments of the likely classification of unclassified films or unclassified computer games; and
 - (d) provide for a notice system that empowers the Director to give a notice (a **barring notice**) to a particular person in specified circumstances (including circumstances that relate to whether the Director is satisfied as to a matter or matters); and
 - (e) specify the effect of a barring notice, which may include but is not limited to providing that a person in respect of whom a barring notice is in force may not be authorised to make assessments of the likely classifications of unclassified films or unclassified computer games; and
 - (f) provide for review by the Administrative Review Tribunal of decisions under the scheme; and
 - (g) confer functions and powers on the Board or the Director in relation to and for the purposes of the scheme; and
 - (h) provide for administrative matters, such as the making of applications and the giving of notices.
- (4) The scheme may specify the circumstances in which an unclassified film or an unclassified computer game may not be advertised.
- (5) The Minister must consult with participating Ministers before making a determination under subsection (1).
- (6) A determination under subsection (1) must not be such as to permit the advertisement of a film or computer game that, if the film or

computer game were classified, would be likely to be classified RC or X 18+.

Subdivision B—Assessments of likely classifications of unclassified films and unclassified computer games

32 Person may apply for assessment of likely classification of unclassified film or unclassified computer game

- (1) A person who is, or proposes to be, the distributor, exhibitor or publisher of an unclassified film or an unclassified computer game may apply to the Board for an assessment of the likely classification of the film or computer game for the purpose of advertising the film or computer game.
- (2) The application must:
 - (a) be in writing; and
 - (b) be in a form approved in writing by the Director; and
 - (c) be signed by or on behalf of the applicant; and
 - (d) include any information, statements, explanations or other matters required by the form; and
 - (e) be accompanied by any other relevant material required by the form; and
 - (f) be accompanied by the prescribed fee.

33 Board may assess likely classification of film or computer game

- (1) This section applies if an application has been made under section 32 for the assessment of the likely classification of an unclassified film or an unclassified computer game.
- (2) The Board may assess the classification that, in the opinion of the Board, the film or computer game would be likely to have if the film or computer game were classified, having regard to the material and information available to the Board when making the assessment.

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- (3) The Board may refuse to assess the likely classification of the film or computer game if the Board considers that the material and information available to the Board is insufficient (whether or not the Board has made a request under subsection (4)).
- (4) The Board may request the applicant to give to the Board, within the period specified in the request, further information for the purpose of enabling the Board to deal with the application.
- (5) The Board may decline to deal with the application, or decline to further deal with the application, until the information is given to the Board in accordance with the request.
- (6) To avoid doubt, this section does not require the Board to obtain further information under subsection (4) for the purposes of the Board's assessment.
- (7) An assessment made under subsection (2) is not a legislative instrument.

34 Revocation of assessments

- (1) If, after making an assessment under section 33 of the likely classification of an unclassified film or an unclassified computer game, but before the film or computer game is classified, the Board is of the opinion that:
 - (a) the film or computer game contains, or will contain, material of which the Board was unaware when the Board made the assessment; and
 - (b) if the Board had been aware of the material before making the assessment, it would have assessed the film or computer game as likely to have a higher classification;the Board must revoke the assessment, and must also revoke the approval of any approved advertisement for the film or game.
- (2) The Board must revoke an assessment under section 33 of the likely classification of a film or computer game, and must also revoke the approval of any approved advertisement for the film or

game, if the applicant for the assessment makes a written request that the Board do so.

- (3) The revocation of an assessment or approved advertisement takes effect:
- (a) when written notice of the decision to revoke is given under section 35 to the applicant concerned; or
 - (b) if a later day is specified in the instrument of revocation—on that later day.

35 Notice of decisions

The Board must give written notice of a decision under section 33 or 34 to the applicant for the assessment or advertisement concerned as soon as practicable but not later than 30 days after the making of the decision.

Part 4—Reclassification

37 Simplified outline of this Part

Once a publication, film or computer game is classified, it cannot be reclassified for 2 years.

An advertisement that has been approved, or refused approval, cannot be approved, or refused approval, for 2 years.

After 2 years, the Minister may request that the Board reclassify the material, or reconsider the advertisement.

If the Board is requested to reclassify a publication, a film or a computer game or to reconsider a decision on an advertisement, the Director of the Board must invite submissions, and the Board must consider any submissions that have been made.

38 Limit on reclassification

- (1) If a publication, a film or a computer game is classified, the publication, film or computer game must not be reclassified within the period of 2 years commencing on the day the decision to classify took effect.
- (2) If an advertisement is approved or refused approval, the Board must not approve or refuse to approve the advertisement within the period of 2 years commencing on the day the decision to approve or refuse to approve the advertisement took effect.

39 Reclassification etc. after 2 years

- (1) After that period of 2 years, the Minister may request that the Board:
 - (a) reclassify the publication, film or computer game; or

- (b) reconsider the advertisement and approve or refuse to approve it.
- (3) If the Minister requests the Board to act under subsection (1), the Board must do so.
- (4) If a participating Minister asks the Minister, in writing, to make a request under this section, the Minister must do so.
- (5) If the publisher of the publication, film or computer game resides in the Australian Capital Territory or has an office in the Australian Capital Territory, the Director may, by notice in writing given to the publisher, require the publisher to submit a copy of the publication, film or computer game for the purpose of reclassifying it.
- (6) A person to whom a notice under this section is given must, within 5 business days after receiving the notice, comply with the notice.

Penalty: 20 penalty units.
- (7) An offence against subsection (6) is a strict liability offence.
- (8) It is a defence to a prosecution for an offence against subsection (6) if the defendant proves that he or she did not have a copy of the publication, film or computer game.

40 Notice of request to reclassify etc.

- (1) If the Board is requested to reclassify a publication, a film or a computer game or reconsider a decision on an advertisement, the Director must give notice of the request, inviting submissions about the matter.
- (2) The Director must cause the contents of the notice to be publicised in such manner as the Director decides at least 30 days before the Board proposes to consider the matter.
- (3) If practicable, the Director must give a copy of the notice to the person on whose application the former classification or approval

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was made or given at least 30 days before the Board proposes to consider the matter.

- (4) The notice must specify the day on which the Board proposes to consider the matter.

41 Consideration of submissions

The matters that the Board is to take into account in reclassifying the publication, film or computer game or in approving or refusing to approve the advertisement include issues raised in submissions made to the Board about the matter.

Part 5—Review of decisions

41A Simplified outline of this Part

Applications for a review of classification decisions can be made to the Classification Review Board.

Applications must generally be made within 30 days after the classification took effect. This period can be extended by the Review Board.

The Review Board can refuse to deal with certain applications.

41B Reviewable decisions

This Part applies to the following decisions:

- (a) a decision (as defined in section 5) of the Board;
- (b) a decision of an accredited person to classify a film or computer game under section 22K.

42 The persons who may apply for review

- (1) Any of the following persons may apply to the Review Board for a review of a decision to which this Part applies:
 - (a) the Minister;
 - (b) the applicant for classification of the publication, film or computer game concerned, the applicant for assessment under section 33 of the likely classification of the unclassified film or unclassified computer game concerned, or the applicant for approval of the advertisement concerned;
 - (c) the publisher of the film, publication or computer game concerned;
 - (d) a person aggrieved by the decision.

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- (2) If a participating Minister asks the Minister, in writing, to apply for a review of a decision to which this Part applies, the Minister must do so.
- (3) Without limiting paragraph (1)(d), if the decision referred to in that paragraph is a restricted decision, the following persons or bodies are taken to be persons aggrieved by the decision:
 - (a) a person who has engaged in a series of activities relating to, or research into, the contentious aspects of the theme or subject matter of the publication, film or computer game concerned;
 - (b) an organisation or association, whether incorporated or not, whose objects or purposes include, and whose activities relate to, the contentious aspects of that theme or subject matter.
- (4) However, a person or body is not aggrieved by a restricted decision because of subsection (3) if the decision was made before:
 - (a) the person engaged in a series of activities relating to, or research into, the contentious aspects of the theme or subject matter of the publication, film or computer game concerned; or
 - (b) the organisation or association was formed, or its objects or purposes included and its activities related to, the contentious aspects of that theme or subject matter.
- (5) In this section:
restricted decision means a decision:
 - (a) to classify a publication Category 1 restricted, Category 2 restricted or RC; or
 - (b) to classify a film MA 15+, R 18+, X 18+ or RC; or
 - (c) to classify a computer game MA 15+, R 18+ or RC.

42A Review Board may refuse to deal with certain applications

The Review Board may refuse to deal with an application for review made by a person referred to in paragraph 42(1)(d), or to

deal further with it, if the Review Board is satisfied that the application is frivolous or vexatious or not made in good faith.

43 Applications for review

- (1) An application for review of a decision must be:
 - (a) in writing; and
 - (b) made in a form approved by the Convenor in writing; and
 - (c) signed by or on behalf of the applicant; and
 - (d) except for an application made by the Minister—
accompanied by the prescribed fee.
- (2) An application by the Minister for review of a decision may be made at any time.
- (3) Any other application for review of a decision must be made:
 - (a) within 30 days after the classification took effect; or
 - (b) within such longer period as the Review Board allows.
- (4) If a person other than the original applicant applies for review of a decision, the Convenor must, if practicable, notify the original applicant in writing of the application and of the day on which it will be considered.

44 Dealing with applications

- (1) The Review Board must deal with an application for review of a decision in the same way that the Board deals with an application for classification of a publication, film or computer game or for approval of an advertisement.
- (2) Section 19 (other than subsection 19(6)) applies for the purpose of an application for review as if:
 - (a) references in that section to the Board were references to the Review Board; and
 - (b) references in that section to the Director were references to the Convenor.

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44A Obtaining copies for review

- (1) If:
- (a) an application is made for a review of a classification decision by a person who is not the original applicant for classification of the publication, film or computer game concerned; and
 - (b) the Board or the Review Board does not have a copy of the publication, film or game and a copy is not available to it; and
 - (c) the original applicant or the publisher of the publication, film or game, resides in the Australian Capital Territory or has an office in the Australian Capital Territory;
- the Convenor may, by notice in writing given to the original applicant or publisher, require the original applicant or publisher to make a copy of the publication, film or game available for the purpose of the review.
- (2) A person to whom a notice under this section is given must, within 5 business days after receiving the notice, comply with the notice.
- Penalty: 20 penalty units.
- (3) An offence against subsection (2) is a strict liability offence.
- (4) It is a defence to a prosecution for an offence against subsection (2) if the defendant proves that he or she did not have a copy of the publication, film or game.

44B Validation of Review Board decisions etc. in relation to decisions on applications by law enforcement agencies

- (1) A decision (the *review decision*) made by the Review Board (whether before or after the commencement of this section) on an application (the *review application*):
- (a) for review of a decision on an application made by or on behalf of a law enforcement agency of the Commonwealth, a State or a Territory; and

- (b) that did not satisfy the requirements of this Act for the making of the review application;
is as valid, and is taken always to have been as valid, as it would have been if the review application had satisfied those requirements.
- (2) Any later decision made, or any later action taken by, the Board, the Review Board, the Director or the Convenor under this Act (whether before or after the commencement of this section) on the basis of the review decision is as valid, and is taken always to have been as valid, as it would have been if the review decision had been made on an application that satisfied the requirements of this Act for the making of the application.

Part 6—The Classification Board

Division 1A—Preliminary

44C Simplified outline of this Part

This Part establishes the Classification Board and deals with administrative matters associated with it, such as membership and procedures.

Division 1—Establishment of the Board

45 Establishment of Classification Board

A Classification Board is established.

46 Constitution of Board

The Board is to consist of:

- (a) a Director; and
- (b) a Deputy Director; and
- (d) other members.

47 Maximum number of members

There must not be more than 20 members or such higher number as is prescribed by the regulations.

48 Appointment of members

- (1) The members (other than temporary members) are to be appointed by the Governor-General.
- (1A) The Governor-General may appoint one or more members referred to in paragraph 46(d) to be Senior Classifiers.
- (2) In appointing members, regard is to be had to the desirability of ensuring that the membership of the Board is broadly representative of the Australian community.
- (3) The Minister must, before recommending the appointment of a member (other than a temporary member), consult with participating Ministers.

49 Full-time and part-time appointments

- (1) The Director and the Deputy Director are to be appointed as full-time members.

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- (2) Any other member may be appointed either as a full-time member or as a part-time member.

50 Temporary members

- (1) The Minister may appoint a person to be a temporary member of the Board if, in his or her opinion, it is necessary to do so for the efficient dispatch of the Board's business.
- (2) An appointment under this section is to be for a maximum period of 3 months.

51 Terms and conditions of appointment

- (1) A member (other than a temporary member) is to be appointed for the period (not longer than 5 years) specified in the instrument of appointment but is eligible for reappointment.
- (2) A member holds office on such terms and conditions (if any) in relation to matters not provided for by this Act as are determined by the Governor-General.
- (3) A member must not hold office as a member for a total of more than 7 years.

Division 2—Responsibilities and powers of the Director

52 Responsibilities and powers of the Director

The Director is responsible for ensuring that the business of the Board is conducted in an orderly and efficient way and, for that purpose, the Director may give directions as to the arrangement of the business of the Board.

53 Powers of Director under State/Territory laws

The Director may exercise powers conferred on him or her by:

- (a) a provision of a law of a State or the Northern Territory that corresponds to section 23, 23A, 24 or 30; or
- (b) a provision of a law of a State or Territory that:
 - (ii) relates to the approval of forms; or
 - (iii) is prescribed.

Division 4—Procedure of the Board

56 Board to regulate its procedure

Subject to this Division, the procedure to be followed by the Board is as determined by the Director.

57 Decisions of the Board

- (1) This section applies to the consideration by the Board of an application or of an advertisement.
- (2) The Director may give directions as to the constitution of the Board for the purpose of that consideration.
- (3) If the members of the Board dealing with a matter are divided in opinion, but not equally divided, the decision of the majority prevails.
- (4) If the members of the Board are equally divided in opinion:
 - (a) if the Board constituted for the purposes of the matter includes the Director—the Director has a casting vote as well as a deliberative vote; and
 - (b) in any other case—the Director must vary the constitution of the Board by adding 1 or more other members and the matter is to be considered again.
- (5) The Director may decide the way in which decisions of the Board, and opinions of individual members, are to be recorded.

58 Procedures that apply to meetings of the Board

- (1) The Director is to convene such meetings of the Board as he or she thinks necessary for the efficient performance of its functions.
- (2) Meetings are to be held at such places as the Director decides.

- (3) The Director is to preside at all meetings at which he or she is present.
- (4) If the Director is not present at a meeting:
 - (a) the Deputy Director is to preside; or
 - (b) if the Deputy Director is not present—the members present are to appoint a member to preside.
- (5) At a meeting, 5 members constitute a quorum.
- (6) Questions arising at a meeting are to be determined by a majority of the votes of the members present and voting.
- (7) If a matter relating to the classification of a publication, film or computer game or the approval of an advertisement is referred to a meeting of the Board, only those members who have read the publication, seen the film or advertisement or seen the computer game demonstrated may vote on the matter.
- (8) The person presiding at a meeting has a deliberative vote and, if necessary, also has a casting vote.

Division 5—Administrative provisions

59 Delegations

- (1) The Director may by signed instrument delegate to another member all or any of the Director's powers under this Act or the regulations.
- (2) Subject to subsection (3), the Director may, by signed instrument, delegate to a member of staff mentioned in section 88A:
 - (a) all or any of the Board's powers under this Act in relation to:
 - (i) the classification of publications, films or computer games; or
 - (ii) the approval of advertisements for publications, films or computer games; and
 - (b) all or any of the Director's powers under the regulations.
- (3) A power may only be delegated under paragraph (2)(a) if the Board has, by resolution, determined that the delegation is desirable for the efficient running of the Board.

60 Remuneration and allowances

- (1) A member is to be paid the remuneration and allowances determined by the Remuneration Tribunal. If there is no determination in force, the member is to be paid such remuneration as is prescribed.
- (2) A member is to be paid such other allowances as are prescribed.
- (3) Subsections (1) and (2) have effect subject to the *Remuneration Tribunal Act 1973*.

61 Leave of absence

- (1) A member has the recreation leave entitlements determined by the Remuneration Tribunal.

- (2) The Minister may grant a member leave of absence, other than recreation leave, on such terms and conditions as to remuneration or otherwise as the Minister determines.

62 Outside employment

- (1) Except with the consent of the Minister, a full-time member must not engage in paid employment outside the duties of his or her office.
- (2) Subsection (1) does not apply to service in the Defence Force.

63 Resignation

- (1) A member (other than a temporary member) may resign by giving a signed notice of resignation to the Governor-General.
- (2) A temporary member may resign by giving a signed notice of resignation to the Minister.

64 Disclosure of interests

- (1) A member who has a conflict of interest in relation to a matter being considered or about to be considered by the Board must disclose the matters giving rise to that conflict to the Board as soon as possible after becoming aware of the conflict.
- (2) The member must not take part in the making of a decision by the Board in relation to the matter unless the Director agrees or, if the member is the Director, the Minister agrees.
- (3) For the purposes of this section, a member has a conflict of interest in relation to a matter being considered or about to be considered by the Board if the member has any interest, pecuniary or otherwise, that could conflict with the proper performance of the member's functions in relation to that matter.

65 Termination of appointment

- (1) The Governor-General may terminate the appointment of a member for misbehaviour or physical or mental incapacity.
- (2) The Governor-General must terminate the appointment of a member if:
 - (a) the member:
 - (i) becomes bankrupt; or
 - (ii) applies to take the benefit of any law for the relief of bankrupt or insolvent debtors; or
 - (iii) compounds with his or her creditors; or
 - (iv) makes an assignment of his or her remuneration for the benefit of his or her creditors; or
 - (b) the member is a full-time member and is absent from duty, except on leave of absence, for 14 consecutive days or for 28 days in any 12 months; or
 - (c) the member is a part-time member and is absent, without reasonable excuse, from 3 consecutive meetings of the Board; or
 - (d) the member engages in paid employment contrary to section 62; or
 - (e) the member fails, without reasonable excuse, to comply with section 64.
- (3) If a member is:
 - (a) an eligible employee for the purposes of the *Superannuation Act 1976*; or
 - (b) a member of the superannuation scheme established by deed under the *Superannuation Act 1990*; or
 - (c) an ordinary employer-sponsored member of PSSAP, within the meaning of the *Superannuation Act 2005*;the Governor-General may, with the member's consent, retire the member from office on the ground of incapacity.
- (4) In spite of anything in this Act, a member who:

- (a) is an eligible employee for the purposes of the *Superannuation Act 1976*; and
 - (b) has not reached his or her retiring age (within the meaning of that Act);cannot be retired from office on the ground of invalidity (within the meaning of Part IVA of that Act) unless CSC has given a certificate under section 54C of that Act.
- (5) In spite of anything in this Act, a member who:
 - (a) is a member of the superannuation scheme established by deed under the *Superannuation Act 1990*; and
 - (b) is under 60;cannot be retired from office on the ground of invalidity (within the meaning of that Act) unless CSC has given a certificate under section 13 of that Act.
- (5A) In spite of anything in this Act, a member who:
 - (a) is an ordinary employer-sponsored member of PSSAP, within the meaning of the *Superannuation Act 2005*; and
 - (b) is under 60;cannot be retired from office on the ground of invalidity (within the meaning of that Act) unless CSC has given an approval and certificate under section 43 of that Act.
- (6) This section applies to a temporary member as if references to the Governor-General were references to the Minister.

66 Acting appointments

- (1) If:
 - (a) there is a vacancy in the office of Director, whether or not an appointment has previously been made to the office; or
 - (b) the Director is absent from duty or from Australia or is, for any reason, unable to perform the duties of the office;the Deputy Director is to act as the Director during the vacancy, absence or inability.

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Note: For rules that apply to persons acting as the Director, see section 33A of the *Acts Interpretation Act 1901*.

- (2) If the Deputy Director is not available, the Minister may appoint another member to act as the Director during the vacancy, absence or inability.

Note: For rules that apply to acting appointments of the Director, see section 33A of the *Acts Interpretation Act 1901*.

- (3) The Minister may appoint a person to act in the office of a member other than the Director:

- (a) during a vacancy in the office, whether or not an appointment has previously been made to the office; or
- (b) during a period, or during all periods, when the holder of the office is absent from duty or from Australia or is, for any reason, unable to perform the duties of the office.

Note: For rules that apply to acting appointments of members, see section 33A of the *Acts Interpretation Act 1901*.

67 Annual report

- (1) As soon as practicable after the end of each financial year, the Director must give to the Minister a report of the management of the administrative affairs of the Board during the financial year.
- (2) The Minister must cause a copy of the report to be laid before each House of the Parliament within 15 sitting days of that House after its receipt by the Minister.

Part 7—The Review Board

Division 1A—Preliminary

71 Simplified outline of this Part

This Part establishes the Classification Review Board and deals with administrative matters associated with it, such as membership and procedures.

Division 1—Establishment of the Review Board

72 Establishment of Classification Review Board

A Classification Review Board is established.

73 Constitution of Review Board

The Review Board is to consist of:

- (a) a Convenor; and
- (b) a Deputy Convenor; and
- (c) at least 3, but not more than 8 (or such higher number as is prescribed) other members.

74 Appointment of members of the Review Board

- (1) The members of the Review Board are to be appointed by the Governor-General.
- (2) In appointing members of the Review Board, regard is to be had to the desirability of ensuring that the membership of the Review Board is broadly representative of the Australian community.
- (3) The Minister must, before recommending the appointment of a member of the Review Board, consult with participating Ministers.

75 Members of the Review Board to be part-time

The members of the Review Board are to be appointed as part-time members.

76 Terms and conditions of appointment

- (1) A member of the Review Board is to be appointed for the period (not longer than 5 years) specified in the instrument of appointment but is eligible for reappointment.

- (2) A member of the Review Board holds office on such terms and conditions (if any) in relation to matters not provided for by this Act as are determined by the Governor-General.
- (3) A member of the Review Board must not hold office as a member of the Review Board for a total of more than 7 years.

Division 2—Responsibilities and powers of the Convenor

77 Responsibilities and powers of the Convenor

The Convenor is responsible for ensuring that the business of the Review Board is conducted in an orderly and efficient way and, subject to section 78, the Convenor may give directions as to the arrangement of the business of the Review Board or the constitution of the Review Board for the purpose of considering a particular matter.

77A Powers of Convenor under State/Territory laws

The Convenor may exercise powers conferred on him or her by a provision of a law of a State or the Northern Territory that corresponds to section 44A.

Division 3—Procedure of the Review Board

78 Constitution of Review Board for the purpose of its functions

For the purpose of performing its functions, the Review Board is to be constituted by at least 3 of its members who are to be nominated for the purpose by the Convenor.

79 Decisions of the Review Board

- (1) If the members of the Review Board dealing with a matter are divided in opinion, but not equally divided, the decision of the majority prevails.
- (2) If the members of the Review Board are equally divided in opinion:
 - (a) if the Review Board constituted for the purposes of the application or matter includes the Convenor—the Convenor has a casting vote as well as a deliberative vote; and
 - (b) in any other case—the Convenor is to vary the constitution of the Review Board by adding 1 or more other members and the matter is to be considered again.
- (3) The Convenor may decide the way in which decisions of the Review Board, and opinions of individual members, are to be recorded.

Division 4—Administrative provisions

79A Delegations

- (1) The Convenor may, by signed instrument, delegate to another member of the Review Board all or any of the Convenor's powers under this Act or the regulations.
- (2) Subject to subsection (3), the Convenor may, by signed instrument, delegate to a member of staff mentioned in section 88A:
 - (a) all or any of the Review Board's powers under this Act in relation to:
 - (i) the classification of publications, films or computer games; or
 - (ii) the approval of advertisements for publications, films or computer games; and
 - (b) all or any of the Convenor's powers under the regulations.
- (3) A power may only be delegated under paragraph (2)(a) if the Review Board has, by resolution, determined that the delegation is desirable for the efficient running of the Review Board.

80 Remuneration and allowances

- (1) A member of the Review Board is to be paid the remuneration and allowances determined by the Remuneration Tribunal. If there is no determination in force, the member is to be paid such remuneration as is prescribed.
- (2) A member of the Review Board is to be paid such other allowances as are prescribed.
- (3) Subsections (1) and (2) have effect subject to the *Remuneration Tribunal Act 1973*.

81 Resignation

A member of the Review Board may resign by giving a signed notice of resignation to the Governor-General.

82 Disclosure of interests

- (1) A member of the Review Board who has a conflict of interest in relation to a matter being considered or about to be considered by the Review Board must disclose the matters giving rise to that conflict to the Review Board as soon as possible after becoming aware of the conflict.
- (2) The member must not take part in the making of a decision by the Review Board in relation to the matter unless the Convenor agrees or, if the member is the Convenor, the Minister agrees.
- (3) For the purposes of this section, a member of the Review Board has a conflict of interest in relation to a matter being considered or about to be considered by the Review Board if the member has any interest, pecuniary or otherwise, that could conflict with the proper performance of the member's functions in relation to that matter.

83 Termination of appointment

- (1) The Governor-General may terminate the appointment of a member of the Review Board for misbehaviour or physical or mental incapacity.
- (2) The Governor-General must terminate the appointment of a member of the Review Board if:
 - (a) the member:
 - (i) becomes bankrupt; or
 - (ii) applies to take the benefit of any law for the relief of bankrupt or insolvent debtors; or
 - (iii) compounds with his or her creditors; or
 - (iv) makes an assignment of his or her remuneration for the benefit of his or her creditors; or

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- (b) the member is absent, without reasonable excuse, from 3 consecutive meetings of the Review Board; or
 - (c) the member fails, without reasonable excuse, to comply with section 82.
- (3) If a member of the Review Board is:
 - (a) an eligible employee for the purposes of the *Superannuation Act 1976*; or
 - (b) a member of the superannuation scheme established by deed under the *Superannuation Act 1990*; or
 - (c) an ordinary employer-sponsored member of PSSAP, within the meaning of the *Superannuation Act 2005*;the Governor-General may, with the member's consent, retire the member from office on the ground of incapacity.
- (4) In spite of anything in this Act, a member of the Review Board who:
 - (a) is an eligible employee for the purposes of the *Superannuation Act 1976*; and
 - (b) has not reached his or her retiring age (within the meaning of that Act);cannot be retired from office on the ground of invalidity (within the meaning of Part IVA of that Act) unless CSC has given a certificate under section 54C of that Act.
- (5) In spite of anything in this Act, a member of the Review Board who:
 - (a) is a member of the superannuation scheme established by deed under the *Superannuation Act 1990*; and
 - (b) is under 60;cannot be retired from office on the ground of invalidity (within the meaning of that Act) unless CSC has given a certificate under section 13 of that Act.
- (6) In spite of anything in this Act, a member of the Review Board who:

- (a) is an ordinary employer-sponsored member of PSSAP, within the meaning of the *Superannuation Act 2005*; and
 - (b) is under 60;
- cannot be retired from office on the ground of invalidity (within the meaning of that Act) unless CSC has given an approval and certificate under section 43 of that Act.

84 Acting appointments

- (1) If:
- (a) there is a vacancy in the office of Convenor, whether or not an appointment has previously been made to the office; or
 - (b) the Convenor is absent from duty or from Australia or is, for any reason, unable to perform the duties of the office;
- the Deputy Convenor is to act as the Convenor during the vacancy, absence or inability.

Note: For rules that apply to persons acting as the Convenor, see section 33A of the *Acts Interpretation Act 1901*.

- (2) If the Deputy Convenor is not available, the Minister may appoint another member of the Review Board to act as the Convenor during the vacancy, absence or inability.

Note: For rules that apply to acting appointments of the Convenor, see section 33A of the *Acts Interpretation Act 1901*.

- (3) The Minister may appoint a person to act in the office of a member of the Review Board other than the Convenor:
- (a) during a vacancy in the office, whether or not an appointment has previously been made to the office; or
 - (b) during any period, or during all periods, when the holder of the office is absent from duty or from Australia or is, for any reason, unable to perform the duties of the office.

Note: For rules that apply to acting appointments of members of the Review Board, see section 33A of the *Acts Interpretation Act 1901*.

85 Annual report

- (1) As soon as practicable after the end of each financial year, the Convenor must give to the Minister a report of the management of the administrative affairs of the Review Board during the financial year.
- (2) The Minister must cause a copy of the report to be laid before each House of the Parliament within 15 sitting days of that House after its receipt by the Minister.

Part 8—Miscellaneous

85A Simplified outline of this Part

This Part deals with miscellaneous matters, such as waiver of fees and regulations.

86 Immunity from suit

Criminal or civil proceedings do not lie against the following persons:

- (a) a member of the Board;
 - (b) a member of the Review Board;
 - (c) a member of staff assisting the Board or the Review Board;
- in relation to anything done, or omitted to be done, in good faith by the person in connection with the performance or purported performance of functions or duties, or the exercise or purported exercise of powers, conferred by this Act.

87 Evidentiary certificates

Applications to the Director

- (1) A person may apply to the Director for a certificate about action taken, or not taken, under this Act by the Director or by the Board.
- (2) If the application is not an enforcement application, the Director must give the certificate to the applicant after the applicant pays the prescribed fee.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

- (3) If the application is an enforcement application, the Director must give the certificate to the applicant after the applicant makes the

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application. The applicant must pay the prescribed fee on or after making the application.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

Applications to the Convenor

- (4) A person may apply to the Convenor for a certificate about action taken, or not taken, under this Act by the Convenor or by the Review Board.

- (5) If the application is not an enforcement application, the Convenor must give the certificate to the applicant after the applicant pays the prescribed fee.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

- (6) If the application is an enforcement application, the Convenor must give the certificate to the applicant after the applicant makes the application. The applicant must pay the prescribed fee on or after making the application.

Note: For an applicant that is the Commonwealth or a Commonwealth entity: see section 91A.

87A Board to make decisions within a specified time

- (1) The Board must make a decision on:

- (a) an application for the classification of a publication, film or computer game (other than an enforcement application); or
- (b) an application for approval of an advertisement; or
- (c) an application for an assessment of the likely classification of an unclassified film or an unclassified computer game;

within 20 business days, or such shorter period as is prescribed by the regulations for the application. The time from which the period runs is to be worked out in the way prescribed by the regulations.

- (2) If the Board does not make the decision within the period, the Director must state the reason for the Board not doing so in the annual report given to the Minister under section 67.

87B Review Board to make decisions within a specified time

- (1) The Review Board must make a decision on an application for a review of a decision within 20 business days, or such other period as is prescribed by the regulations for the application. The time from which the period runs is to be worked out in the way prescribed by the regulations.
- (2) If the Review Board does not make the decision within the period, the Convenor must state the reason for the Review Board not doing so in the annual report given to the Minister under section 85.

88 Additional functions of Board

The Director may, with the written approval of the Minister, enter into an arrangement with a person (including an authority of the Commonwealth) for the performance of services by the Board in relation to material made available on a telecommunications service or other communications service.

88A Staff assisting the Board and the Review Board

The staff assisting the Board and the Review Board are to be persons engaged under the *Public Service Act 1999* and made available for the purpose by the Secretary of the Department.

88B Referral of certain unclassified material to law enforcement agencies

- (1) If the Secretary of the Department is of the opinion that an unclassified publication, unclassified film or unclassified computer game (the *unclassified material*) would, if classified, be likely to be classified RC, the Secretary may provide a copy of the unclassified material to:

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- (a) the Australian Federal Police; or
 - (b) the police force of a State or Territory; or
 - (c) an authority or person responsible for law enforcement in a foreign country or a part of a foreign country.
- (2) The Secretary may, in writing, delegate his or her power under subsection (1) to a member of staff mentioned in section 88A.
- (3) Subsection (1) does not, by implication, limit any other power or function that the Secretary has to provide information or things to the bodies mentioned in that subsection, or to any other body.

89 Service of notices

A notice that may be given to a person under this Act is taken to have been given to the person if:

- (a) it is personally delivered to the person; or
- (b) it is sent by post addressed to the person's place of residence or business last known to the Director or Convenor; or
- (c) it is left at the person's place of residence or business last known to the Director or Convenor with a person who is apparently at least 16 and is apparently living or employed at that place.

90 Payments to the States and Territories

- (1) The Minister may enter into an agreement with a participating Minister under which amounts are to be paid to the participating Minister's State or Territory in respect of the administration by the State or Territory of the scheme referred to in section 3.
- (2) Payments referred to in subsection (1) are to be made out of the Consolidated Revenue Fund, which is appropriated accordingly.

91 Waiver of fees*Fee waiver on application*

- (1) The Minister may, on written application, waive all or part of the payment of fees payable, or notionally payable, in respect of an application under this Act if:
- (a) in the Minister's opinion it is in the public interest to do so for public health or educational reasons; or
 - (b) the body that would be liable, or notionally liable, for the fee is:
 - (i) the Commonwealth, a State or a Territory (or an authority of one of those bodies); or
 - (ii) an entity that is registered under the *Australian Charities and Not-for-profits Commission Act 2012*; or
 - (iii) a not-for-profit entity that is not an ACNC type of entity; or
 - (c) the payment is for special interest material having a limited distribution that is:
 - (i) wholly or mainly a documentary record of an event; or
 - (ii) of a cultural or like nature; or
 - (iii) a short film from a new or emerging film maker;and, in the Minister's opinion, it is in the public interest to do so.

Notice of decision

- (2) The Minister must, within 28 days after making a decision under subsection (1), notify the applicant in writing of the decision and of the reasons for the decision.
- (3) The notice must include a statement to the effect that, subject to the *Administrative Review Tribunal Act 2024*, an application may be made to the Administrative Review Tribunal for a review of the decision.
- (4) A failure to comply with subsection (3) does not invalidate the decision.

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Review by ART

- (5) Applications may be made to the Administrative Review Tribunal for review of decisions under subsection (1).

Delegation

- (6) The Minister may, in writing, delegate his or her power to waive fees to:
- (a) the Secretary of the Department; or
 - (b) an SES employee, or acting SES employee, in the Department.

91A Commonwealth not liable to pay a fee

- (1) The Commonwealth is not liable to pay a fee that is payable under this Act. However, it is the Parliament's intention that the Commonwealth should be notionally liable to pay such a fee.
- (2) The Finance Minister may give such written directions as are necessary or convenient for carrying out or giving effect to subsection (1) and, in particular, may give directions in relation to the transfer of money within an account, or between accounts, operated by the Commonwealth.
- (3) Directions under subsection (2) have effect, and must be complied with, despite any other Commonwealth law.
- (4) In subsections (1) and (2), **Commonwealth** includes a Commonwealth entity (within the meaning of the *Public Governance, Performance and Accountability Act 2013*) that cannot be made liable to taxation by a Commonwealth law.

Note: For persons that can be made liable to pay tax, but are exempt from the liability because of another Commonwealth law: see section 91B.

91B Cancellation of exemptions from fees

- (1) This section cancels the effect of a provision of another Act that would have the effect of exempting a person from liability to pay a fee payable under this Act.
- (2) The cancellation does not apply if the provision of the other Act:
 - (a) commences after this section commences; and
 - (b) refers specifically to a fee payable under this Act.

91C Debts due to the Commonwealth

A fee payable under this Act is recoverable as a debt due to the Commonwealth.

92 Act not to apply to broadcasting services under Broadcasting Services Act

This Act does not apply to broadcasting services to which the *Broadcasting Services Act 1992* applies.

92A Proceedings arising out of administration of Board or Review Board

Any judicial or other proceeding relating to a matter arising out of the management of the administrative affairs of the Board or the Review Board, including any proceeding relating to anything done by the Director or the Convenor, may be instituted by or against the Commonwealth.

93 Regulations*General regulation-making power*

- (1) The Governor-General may make regulations prescribing matters:
 - (a) required or permitted by this Act to be prescribed; or
 - (b) necessary or convenient to be prescribed for carrying out or giving effect to this Act.

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Regulations in relation to assessments of additional content or consumer advice

- (2) Without limiting subsection (1), the regulations may prescribe:
 - (aa) for the purposes of paragraphs 17A(2)(c), 17B(1)(b) and 17C(1)(b)—circumstances in which an assessment of a computer game is taken to contain misleading, incorrect or grossly inadequate information; and
 - (a) for the purposes of subparagraphs 17A(2)(a)(ii), 21AA(a)(ii), 21AC(a)(ii) and 22E(2)(a)(ii)—circumstances in which an assessment of classifiable elements is taken to be misleading, incorrect or grossly inadequate; and
 - (b) for the purposes of paragraphs 22E(2)(c), 22F(1)(b) and 22H(1)(b)—circumstances in which an assessment of additional content is taken to contain misleading, incorrect or grossly inadequate information; and
 - (c) for the purposes of subparagraphs 22CH(1)(b)(ii) and 22L(1)(b)(ii)—circumstances in which consumer advice is taken to be misleading, incorrect or grossly inadequate; and
 - (d) for the purposes of subparagraph 22Q(2)(b)(iii)—circumstances in which consumer advice is taken to be grossly misleading, grossly incorrect or grossly inadequate.
- (3) To avoid doubt, the regulations are not to be taken to limit the circumstances in which:
 - (a) an assessment is misleading, incorrect or grossly inadequate; or
 - (b) an assessment contains misleading, incorrect or grossly inadequate information; or
 - (c) consumer advice is misleading, incorrect or grossly inadequate; or
 - (d) consumer advice is grossly misleading, grossly incorrect or grossly inadequate.

Part 9—Transitional provisions and repeals

93A Simplified outline of this Part

This Part contains transitional provisions relating to the Customs (Cinematograph Films) Regulations.

94 Definitions

In this Part:

censor means:

- (a) the Chief Censor, the Deputy Chief Censor or another member of the former Board; or
- (b) a Deputy Censor appointed under the Customs (Cinematograph Films) Regulations; or
- (c) a classification officer appointed under the Indecent Articles and Classified Publications Act 1975 of New South Wales, the *Classification of Publications Ordinance 1983* of the Australian Capital Territory or the *Classification of Publications and Films Act* of the Northern Territory.

former Board means the Censorship Board constituted under the Customs (Cinematograph Films) Regulations.

former Review Board means the Film and Literature Board of Review constituted under the Customs (Cinematograph Films) Regulations.

95 Service of member of former Board or former Review Board

For the purposes of this Act, service by a person as a member of the former Board or of the former Review Board is taken to be service as a member of the Board or the Review Board.

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96 Decisions of former Board and former Review Board

- (1) A classification, approval or determination made by the former Board or by a censor has effect as if it had been made by the Board under this Act.
- (2) A classification, approval or determination made by the former Review Board has effect as if it had been made by the Review Board under this Act.

97 Pending applications

If an application for:

- (a) classification of a film, a publication or a computer game; or
- (b) approval of an advertisement; or
- (d) review of a decision;

is, on the day fixed under subsection 2(2) or the day applicable under subsection 2(3), pending under a law of a State or Territory, the application may be dealt with as if it had been made under this Act.

97A Reclassification

- (1) The Board may, on its own initiative, reclassify a publication or film where the publication or film was classified, in response to an enforcement application, by the former Board or a censor under the law of one State or Territory only.
- (2) The Board may also, on its own initiative, reclassify a publication or film where the publication or film was classified, in response to an enforcement application, by the former Board or a censor and was given different classifications in different States or Territories.

98 Repeals

- (1) The Customs (Cinematograph Films) Regulations of the Commonwealth are repealed.

- (2) The *Classification of Publications Ordinance 1983* of the Australian Capital Territory is repealed.

Part 10—Material prohibited in certain areas in the Northern Territory

Division 1—Preliminary

98A Main object of Part

The main object of this Part is to enable special measures to be taken to protect children living in Indigenous communities in the Northern Territory from being exposed to prohibited material.

98B Simplified outline of this Part

There are prohibitions on the possession, control and supply of certain publications, films, games and advertisements in certain areas of the Northern Territory.

Police officers have powers to seize such material in those areas. Seized material is generally forfeited to the Commonwealth.

The Indigenous Affairs Minister can, after undertaking community consultation, determine that some or all of the provisions of this Part cease to have effect.

This Part ceases to have effect at the end of 15 July 2022.

99 Definitions

In this Part:

acquisition of property has the same meaning as in paragraph 51(xxxi) of the Constitution.

body corporate manager, in relation to a body corporate, means:

- (a) the manager or governing officer (however described) of the body corporate; or
- (b) a member of the governing body (however described) of the body corporate.

child means a person who is under 18 years of age.

Indigenous Affairs Minister means the Minister administering the *Aboriginal Land Rights (Northern Territory) Act 1976*.

Indigenous Affairs Secretary means the Secretary of the Department administered by the Minister who administers the *Aboriginal Land Rights (Northern Territory) Act 1976*.

item, in relation to prohibited material, means a publication, film or computer game.

just terms has the same meaning as in paragraph 51(xxxi) of the Constitution.

level 1 prohibited material means:

- (a) a publication classified Category 1 restricted or Category 2 restricted; or
- (b) an unclassified publication that contains material that would be likely to cause it to be classified Category 1 restricted or Category 2 restricted; or
- (c) a film classified X 18+; or
- (d) an unclassified film that contains material that would be likely to cause it to be classified X 18+; or
- (e) a prohibited advertisement.

level 2 prohibited material means:

- (a) a publication, film or computer game classified RC; or
- (b) an unclassified publication, film or computer game that contains material that would be likely to cause it to be classified RC.

material includes any computer data or other form of recording from which sounds or written or pictorial matter may be produced.

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police officer means a constable within the meaning of the *Crimes Act 1914*.

postal service means a postal service within the meaning of paragraph 51(v) of the Constitution.

prohibited advertisement means an advertisement for a publication, a film or a computer game:

- (a) that has been refused approval under Part 3; or
- (b) that contains material that would be likely to cause it to be refused approval under Part 3.

prohibited material means:

- (a) level 1 prohibited material; or
- (b) level 2 prohibited material.

prohibited material area means an area in the Northern Territory in relation to which a determination under subsection 100A(1) is in force.

seized material means material seized under section 106.

State/Territory body corporate manager, in relation to a body corporate that operates within a State or Territory, means a person who takes part in managing, administering or governing the business of the body corporate in the State or Territory.

supply includes supply by way of sale, exchange, gift, lease, loan, hire or hire-purchase.

99A The Racial Discrimination Act is not affected

This Part does not affect the operation of the *Racial Discrimination Act 1975*.

100A Prohibited material areas

- (1) The Indigenous Affairs Minister may, by legislative instrument, determine that an area in the Northern Territory is a prohibited material area.

- (2) The Indigenous Affairs Minister may, by legislative instrument, revoke or vary a determination under subsection (1).
- (3) The Indigenous Affairs Minister may make a determination under subsection (1) or (2):
 - (a) on the Indigenous Affairs Minister's own initiative; or
 - (b) following a request made to the Indigenous Affairs Minister by, or on behalf of, a person who is ordinarily resident in the area to which the determination relates.

Community consultation

- (4) Before making a determination under subsection (1) or (2) in relation to an area, the Indigenous Affairs Minister must ensure that:
 - (a) information setting out:
 - (i) the proposal to make the determination; and
 - (ii) an explanation, in summary form, of the consequences of the making of the determination;has been made available in the area; and
 - (b) people living in the area have been given a reasonable opportunity to make submissions to the Indigenous Affairs Minister about:
 - (i) the proposal to make the determination; and
 - (ii) the consequences of the making of the determination; and
 - (iii) their circumstances, concerns and views, so far as they relate to the proposal.
- (5) A failure to comply with subsection (4) does not affect the validity of a determination under subsection (1) or (2).

Criteria for making a determination

- (6) In making a determination under subsection (1) or (2) in relation to an area, the Indigenous Affairs Minister must have regard to the following matters:
 - (a) the object of this Part (see section 98A);

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- (b) the wellbeing of people living in the area;
 - (c) whether there is reason to believe that people living in the area have been the victims of violence or sexual abuse;
 - (d) the extent to which people living in the area have expressed their concerns about being at risk of violence or sexual abuse;
 - (e) whether there is reason to believe that children living in the area have been exposed to prohibited material;
 - (f) the extent to which people living in the area have expressed the view that their wellbeing will be improved if this Part continues to apply in relation to the area;
 - (g) any submissions of the kind referred to in paragraph (4)(b);
 - (h) the views of relevant law enforcement authorities;
 - (i) any other matter that the Indigenous Affairs Minister considers relevant.
- (7) If:
- (a) the Indigenous Affairs Minister makes a determination under subsection (1) in relation to an area; and
 - (b) under subsection (2), the Indigenous Affairs Minister:
 - (i) revokes the determination; or
 - (ii) varies the determination so that the area is no longer a prohibited material area;
- then this Part continues to apply in relation to that area, after the revocation or variation takes effect, in relation to things done, or omitted to be done, before the revocation or variation takes effect.

100C Delegation by Indigenous Affairs Minister

The Indigenous Affairs Minister may, by writing, delegate any or all of his or her powers and functions under section 100A to the Indigenous Affairs Secretary.

Division 2—Offences

101 Possession or control of level 1 prohibited material in prohibited material areas

A person commits an offence if:

- (a) the person has possession or control of material; and
- (b) the material is level 1 prohibited material; and
- (c) the material is in a prohibited material area.

Penalty: 50 penalty units.

Note: For the liability of a body corporate manager, or a State/Territory body corporate manager, see section 104.

102 Possession or control of level 2 prohibited material in prohibited material areas

A person commits an offence if:

- (a) the person has possession or control of material; and
- (b) the material is level 2 prohibited material; and
- (c) the material is in a prohibited material area.

Penalty: 100 penalty units.

Note: For the liability of a body corporate manager, or a State/Territory body corporate manager, see section 104.

103 Supplying prohibited material in and to prohibited material areas

Supply generally

(1) A person commits an offence if:

- (a) the person:
 - (i) supplies material to a third person; or

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- (ii) prepares material intending to supply any of it, or believing that another person intends to supply any of it, to a third person; or
- (iii) transports material intending to supply any of it, or believing that another person intends to supply any of it, to a third person; or
- (iv) guards or conceals material intending to supply any of it, or intending to assist another person to supply any of it, to a third person; or
- (v) possesses material intending to supply any of it to a third person; and
- (b) the third person is in a prohibited material area; and
- (c) the material is prohibited material.

Penalty: 100 penalty units.

Note: For the liability of a body corporate manager, or a State/Territory body corporate manager, see section 104.

Supplying 5 or more items

- (2) A person commits an offence if:
- (a) the person:
 - (i) supplies material to a third person; or
 - (ii) prepares material intending to supply any of it, or believing that another person intends to supply any of it, to a third person; or
 - (iii) transports material intending to supply any of it, or believing that another person intends to supply any of it, to a third person; or
 - (iv) guards or conceals material intending to supply any of it, or intending to assist another person to supply any of it, to a third person; or
 - (v) possesses material intending to supply any of it to a third person; and
 - (b) the third person is in a prohibited material area; and
 - (c) the material is prohibited material; and

- (d) the material consists of 5 or more items of prohibited material.

Penalty: 200 penalty units or imprisonment for 2 years, or both.

Note: For the liability of a body corporate manager, or a State/Territory body corporate manager, see section 104.

- (3) For the purposes of proving an offence against subsection (2), a person who engages in conduct specified in subparagraph (2)(a)(ii), (iii), (iv) or (v) in a prohibited material area, is taken to have done so:
 - (a) intending to supply the material; or
 - (b) believing that another person intends to supply the material; or
 - (c) intending to assist another person to supply the material; as the subparagraph requires, to a person in a prohibited material area.
- (4) Subsection (3) does not apply in relation to a subparagraph mentioned in that subsection if the person proves that he or she did not have the intention or belief required by that subparagraph.

Note: A defendant bears a legal burden in relation to the matters in subsection (4)—see section 13.4 of the *Criminal Code*.

104 Liability of body corporate managers

Body corporate managers generally

- (1) A body corporate manager commits an offence if:
 - (a) the body corporate commits an offence against this Part; and
 - (b) the manager knew that the offence would be committed; and
 - (c) the manager was in a position to influence the conduct of the body corporate in relation to the commission of the offence; and
 - (d) the manager failed to take all reasonable steps to prevent the commission of the offence.

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State/Territory body corporate managers

- (2) A State/Territory body corporate manager for a State or Territory commits an offence if:
- (a) the body corporate commits an offence against this Part within the State or Territory; and
 - (b) the manager knew that the offence would be committed; and
 - (c) the manager was in a position to influence the conduct of the body corporate in relation to the commission of the offence; and
 - (d) the manager failed to take all reasonable steps to prevent the commission of the offence.

Maximum penalties

- (3) The maximum penalty for an offence against subsection (1) or (2) is one-fifth of the maximum penalty that could be imposed for the offence committed by the body corporate, subject to subsection (4).
- (4) An offence against subsection (1) or (2) that relates to an offence committed by a body corporate against subsection 103(2) (supplying 5 or more items in or to a prescribed area) is punishable by either or both of the following:
- (a) a pecuniary penalty not exceeding 200 penalty units;
 - (b) imprisonment for a term not exceeding 2 years.

105 Division does not apply to postal services

This Division does not apply in relation to anything done in the normal course of the provision of a postal service.

Division 3—Seizure and forfeiture of prohibited material

106 Seizure of prohibited material

If:

- (a) a police officer finds material in a prohibited material area;
and
 - (b) the officer suspects on reasonable grounds that the material is
prohibited material;
- the officer may seize the material.

Note: See Part IAA of the *Crimes Act 1914* for police search powers.

107 Seizure notices

- (1) The police officer who is responsible for the seized material (the **responsible officer**) must, within 7 days after the day on which the material was seized, serve a seizure notice on:
 - (a) the owner of the material; or
 - (b) if the owner of the material cannot be identified after reasonable inquiries—the person from whom the material was seized.
- (2) Subsection (1) does not apply if:
 - (a) both:
 - (i) the owner of the material cannot be identified after reasonable inquiries; and
 - (ii) the material was not seized from a person; or
 - (b) it is not possible to serve the person required to be served under subsection (1).
- (3) The seizure notice must:
 - (a) identify the material; and
 - (b) state the date on which the material was seized; and
 - (c) state the ground or grounds on which the material was seized;
and

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- (d) explain the procedures for the possible return of the material set out in sections 108 and 109; and
- (e) provide contact details for the responsible officer; and
- (f) state that, if the material is not returned to the owner under section 108 or 109, it is forfeited to the Commonwealth.

108 Return of seized material—on request

- (1) The owner of the seized material may request the responsible officer to return the material.
- (2) The request must be made:
 - (a) within 60 days after the date of the seizure notice; or
 - (b) if subsection 107(2) applied so that a seizure notice was not served—within 60 days after the day on which the material was seized.
- (3) If:
 - (a) the owner requests the return of the material within the time specified under subsection (2); and
 - (b) the responsible officer is satisfied, on reasonable grounds, that the material is not prohibited material;the responsible officer must return the material to the owner. Otherwise the request must be refused.

109 Return of seized material—application to magistrate

- (1) If the responsible officer refuses to return the material, the owner may apply to a magistrate for an order that the material is to be returned.
- (2) The application must be made within 60 days after the responsible officer's refusal.
- (3) If the magistrate is satisfied that the material is not prohibited material, the magistrate must order that the material is to be returned. Otherwise the magistrate must refuse to make the order.

110 Seized material forfeited to the Commonwealth

Seized material that is not returned to its owner under section 108 or 109:

- (a) is forfeited to the Commonwealth; and
- (b) must be destroyed, disposed of or otherwise dealt with as the Minister directs.

111 Relationship of Division to other laws

The powers conferred, and duties imposed, by this Division on police officers are in addition to, and not in derogation of, any other powers conferred, or duties imposed, by any other law of the Commonwealth or the law of a State or Territory.

Division 4—Miscellaneous

112 Evidence

In proceedings for an offence against this Part, a certificate under section 87 is prima facie evidence of the matters stated in the certificate.

113 Compensation for acquisition of property

- (1) Subsection 50(2) of the *Northern Territory (Self-Government) Act 1978* does not apply in relation to any acquisition of property referred to in that subsection that occurs as a result of the operation of this Part.
- (2) However, if the operation of this Part would result in an acquisition of property to which paragraph 51(xxxi) of the Constitution applies from a person otherwise than on just terms, the Commonwealth is liable to pay a reasonable amount of compensation to the person.
- (3) If the Commonwealth and the person do not agree on the amount of the compensation, the person may institute proceedings in a court of competent jurisdiction for the recovery from the Commonwealth of such reasonable amount of compensation as the court determines.

114 Review of operation of this Part

- (1) The Indigenous Affairs Minister must cause an independent review to be undertaken of the first 7 years of the operation of this Part.
- (2) The review must:
 - (a) assess the effectiveness of the special measures provided for by this Part; and
 - (b) consider any other matter specified by the Indigenous Affairs Minister.

- (3) The review must be completed, and a report must be prepared, before the end of 8 years after this Part commences.
- (4) The person undertaking the review must give the report of the review to the Indigenous Affairs Minister.
- (5) The Indigenous Affairs Minister must cause a copy of the report to be tabled in each House of the Parliament within 15 sitting days of receiving it.

115 Indigenous Affairs Minister may determine that provisions of this Part cease to have effect

- (1) The Indigenous Affairs Minister may, by legislative instrument, determine that some or all of the provisions of this Part cease to have effect.

Note: Under section 116, all of the provisions of this Part cease to have effect 10 years after the day section 3 of the *Stronger Futures in the Northern Territory Act 2012* commences. This section allows the Indigenous Affairs Minister to determine that some or all of the provisions of this Part cease to have effect before then.

- (2) The Indigenous Affairs Minister may, by legislative instrument, revoke a determination under subsection (1).

Community consultation

- (3) Before making a determination under subsection (1) or (2), the Indigenous Affairs Minister must ensure that:
 - (a) information setting out:
 - (i) the proposal to make the determination; and
 - (ii) an explanation, in summary form, of the consequences of the making of the determination;has been made available to people living in prohibited material areas; and
 - (b) people living in prohibited material areas have been given a reasonable opportunity to make submissions to the Indigenous Affairs Minister about:
 - (i) the proposal to make the determination; and

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- (ii) the consequences of making the determination; and
 - (iii) their circumstances, concerns and views, so far as they relate to the proposal.
- (4) A failure to comply with subsection (3) does not affect the validity of a determination under subsection (1) or (2).

Criteria for making a determination

- (5) In making a determination under subsection (1) or (2) in relation to an area, the Indigenous Affairs Minister must have regard to the following matters:
- (a) the object of this Part (see section 98A);
 - (b) the wellbeing of people living in prohibited material areas;
 - (c) whether there is reason to believe that people living in prohibited material areas have been the victims of violence or sexual abuse;
 - (d) the extent to which people living in prohibited material areas have expressed their concerns about being at risk of violence or sexual abuse;
 - (e) whether there is reason to believe that children living in prohibited material areas have been exposed to prohibited material;
 - (f) the extent to which people living in prohibited material areas have expressed the view that their wellbeing will be improved if this Part applies;
 - (g) any submissions of the kind referred to in paragraph (3)(b);
 - (h) the views of relevant law enforcement authorities;
 - (i) any other matter that the Indigenous Affairs Minister considers relevant.
- (6) If the Indigenous Affairs Minister makes a determination under subsection (1), then this Part continues to apply after the determination takes effect in relation to things done, or omitted to be done, before the determination takes effect.
- (7) If, under subsection (2), the Indigenous Affairs Minister revokes a determination under subsection (1), then the provisions of this Part

that were specified in the determination under subsection (1) apply again after the revocation takes effect.

116 Sunset provision

This Part ceases to have effect 10 years after the day section 3 of the *Stronger Futures in the Northern Territory Act 2012* commences.

Endnotes

Endnote 1—About the endnotes

Endnotes

Endnote 1—About the endnotes

The endnotes provide information about this compilation and the compiled law.

The following endnotes are included in every compilation:

Endnote 1—About the endnotes

Endnote 2—Abbreviation key

Endnote 3—Legislation history

Endnote 4—Amendment history

Abbreviation key—Endnote 2

The abbreviation key sets out abbreviations that may be used in the endnotes.

Legislation history and amendment history—Endnotes 3 and 4

Amending laws are annotated in the legislation history and amendment history.

The legislation history in endnote 3 provides information about each law that has amended (or will amend) the compiled law. The information includes commencement details for amending laws and details of any application, saving or transitional provisions that are not included in this compilation.

The amendment history in endnote 4 provides information about amendments at the provision (generally section or equivalent) level. It also includes information about any provision of the compiled law that has been repealed in accordance with a provision of the law.

Editorial changes

The *Legislation Act 2003* authorises First Parliamentary Counsel to make editorial and presentational changes to a compiled law in preparing a compilation of the law for registration. The changes must not change the effect of the law. Editorial changes take effect from the compilation registration date.

If the compilation includes editorial changes, the endnotes include a brief outline of the changes in general terms. Full details of any changes can be obtained from the Office of Parliamentary Counsel.

Misdescribed amendments

A misdescribed amendment is an amendment that does not accurately describe how an amendment is to be made. If, despite the misdescription, the amendment

Endnote 1—About the endnotes

can be given effect as intended, then the misdescribed amendment can be incorporated through an editorial change made under section 15V of the *Legislation Act 2003*.

If a misdescribed amendment cannot be given effect as intended, the amendment is not incorporated and “(md not incorp)” is added to the amendment history.

Endnotes

Endnote 2—Abbreviation key

Endnote 2—Abbreviation key

ad = added or inserted	o = order(s)
am = amended	Ord = Ordinance
amdt = amendment	orig = original
c = clause(s)	par = paragraph(s)/subparagraph(s) /sub-subparagraph(s)
C[x] = Compilation No. x	pres = present
Ch = Chapter(s)	prev = previous
def = definition(s)	(prev...) = previously
Dict = Dictionary	Pt = Part(s)
disallowed = disallowed by Parliament	r = regulation(s)/rule(s)
Div = Division(s)	reloc = relocated
ed = editorial change	renum = renumbered
exp = expires/expired or ceases/ceased to have effect	rep = repealed
F = Federal Register of Legislation	rs = repealed and substituted
gaz = gazette	s = section(s)/subsection(s)
LA = <i>Legislation Act 2003</i>	Sch = Schedule(s)
LIA = <i>Legislative Instruments Act 2003</i>	Sdiv = Subdivision(s)
(md) = misdescribed amendment can be given effect	SLI = Select Legislative Instrument
(md not incorp) = misdescribed amendment cannot be given effect	SR = Statutory Rules
mod = modified/modification	Sub-Ch = Sub-Chapter(s)
No. = Number(s)	SubPt = Subpart(s)
	<u>underlining</u> = whole or part not commenced or to be commenced

Endnote 3—Legislation history

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Classification (Publications, Films and Computer Games) Act 1995	7, 1995	15 Mar 1995	s 1 and 2: 15 Mar 1995 (s 2(1)) Remainder: 1 Jan 1996 (s 2(2) and gaz 1995, No GN50)	
Law and Justice Legislation Amendment Act 1997	34, 1997	17 Apr 1997	Sch 2: 17 Apr 1997 (s 2(1))	—
Public Employment (Consequential and Transitional) Amendment Act 1999	146, 1999	11 Nov 1999	Sch 1 (items 293–296): 5 Dec 1999 (Gazette 1999, No S584) (s 2(1), (2))	—
Classification (Publications, Films and Computer Games) Amendment Act (No. 1) 2000	111, 2000	4 Sept 2000	4 Sept 2000 (s 2)	—
Classification (Publications, Films and Computer Games) Amendment Act (No. 1) 2001	13, 2001	22 Mar 2001	22 Mar 2002 (s 2(2))	Sch 1 (item 57)
Law and Justice Legislation Amendment (Application of Criminal Code) Act 2001	24, 2001	6 Apr 2001	s 4(1), (2) and Sch 6: 24 May 2001 (s 2(1)(a))	s 4(1), (2)
Classification (Publications, Films and Computer Games) Amendment Act 2004	61, 2004	26 May 2004	Sch 1 and 2: 26 May 2005 Remainder: 26 May 2004	Sch 1 (items 16–21)

Classification (Publications, Films and Computer Games) Act 1995

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Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Classification (Publications, Films and Computer Games) Amendment Act (No. 2) 2004	140, 2004	14 Dec 2004	14 Dec 2004 (s 2)	—
Classification (Publications, Films and Computer Games) Amendment Act 2007	27, 2007	15 Mar 2007	Sch 1 and Sch 2 (items 1, 3–6, 10–13, 15, 19, 20, 26): 1 July 2007 (s 2(1) items 2, 3 and F2007L01781) Sch 2 (items 7, 9, 14, 17, 18), Sch 3 (items 7, 8) and Sch 4 (items 10–14): 15 Mar 2008 (s 2(1) items 5, 7, 10, 13, 18, 22) Sch 2 (items 16, 21–25) and Sch 3 (items 1–6, 9–12): 15 Sept 2007 (s 2(1) items 12, 15, 17, 19) Remainder: 15 Mar 2007	Sch 1 (items 18–21), Sch 2 (items 27–29), Sch 3 (item 13) and Sch 4 (items 2, 4, 13)
Families, Community Services and Indigenous Affairs and Other Legislation Amendment (Northern Territory National Emergency Response and Other Measures) Act 2007	128, 2007	17 Aug 2007	s 3–5: 17 Aug 2007 (s 2(1) item 1) Sch 1: 14 Sept 2007 (s 2(1) item 2)	s 3 s 4 and 5 (rep by 93, 2010, Sch 1 [item 1])

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
as amended by				
Social Security and Other Legislation Amendment (Welfare Reform and Reinstatement of Racial Discrimination Act) Act 2010	93, 2010	29 June 2010	Sch 1 (items 1, 4): 31 Dec 2010 (s 2(1) item 1)	Sch 1 (item 4)
Classification (Publications, Films and Computer Games) Amendment (Terrorist Material) Act 2007	179, 2007	28 Sept 2007	29 Sept 2007 (s 2)	Sch 1 (item 4)
Superannuation Legislation Amendment (Trustee Board and Other Measures) (Consequential Amendments) Act 2008	26, 2008	23 June 2008	Sch 1 (items 47–54): 23 June 2008 (s 2(1) item 4)	—
Classification (Publications, Films and Computer Games) Amendment (Assessments and Advertising) Act 2008	69, 2008	1 July 2008	Sch 1: 1 July 2009 Sch 2: 1 Jan 2009 Remainder: 1 July 2008 (s 2(1) item 1)	Sch 1 (item 13) and Sch 2 (item 5)
Statute Law Revision Act 2010	8, 2010	1 Mar 2010	Sch 1 (item 7): 1 Mar 2010 (s 2(1) item 2) Sch 5 (item 137(a)): (s 2(1) items 31, 38)	—

Endnotes

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Social Security and Other Legislation Amendment (Welfare Reform and Reinstatement of Racial Discrimination Act) Act 2010	93, 2010	29 June 2010	Sch 4: 1 July 2010 (s 2(1) item 5)	—
National Security Legislation Amendment Act 2010	127, 2010	24 Nov 2010	Sch 2 (item 1): 25 Nov 2010 (s 2(1) item 4)	—
Statute Law Revision Act 2011	5, 2011	22 Mar 2011	Sch 5 (items 48, 49): 19 Apr 2011 (s 2(1) item 13)	—
Acts Interpretation Amendment Act 2011	46, 2011	27 June 2011	Sch 2 (items 362–369) and Sch 3 (items 10, 11): 27 Dec 2011 (s 2(1) items 3, 12)	Sch 3 (items 10, 11)
Superannuation Legislation (Consequential Amendments and Transitional Provisions) Act 2011	58, 2011	28 June 2011	Sch 1 (items 28–30): (s 2(1) item 2)	—
Stronger Futures in the Northern Territory (Consequential and Transitional Provisions) Act 2012	101, 2012	29 June 2012	Sch 3: 16 July 2012 (s 2(1) item 2)	Sch 3 (items 15, 16)
Classification (Publications, Films and Computer Games) Amendment (R 18+ Computer Games) Act 2012	103, 2012	6 July 2012	Sch 1 (items 1–4): 1 Jan 2013 (s 2)	Sch 1 (item 4)

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Australian Charities and Not-for-profits Commission (Consequential and Transitional) Act 2012	169, 2012	3 Dec 2012	Sch 2 (items 158, 159) and Sch 7: 3 Dec 2012 (s 2(1) item 7) Sch 4 (item 13): never commenced (s 2(1) item 14)	Sch 7
Personal Liability for Corporate Fault Reform Act 2012	180, 2012	10 Dec 2012	Sch 6 (items 4–6): 11 Dec 2012 (s 2)	Sch 7
Public Governance, Performance and Accountability (Consequential and Transitional Provisions) Act 2014	62, 2014	30 June 2014	Sch 8 (items 40–44) and Sch 14: 1 July 2014 (s 2(1) items 6, 14)	Sch 14
as amended by				
Public Governance and Resources Legislation Amendment Act (No. 1) 2015	36, 2015	13 Apr 2015	Sch 2 (items 7–9) and Sch 7: 14 Apr 2015 (s 2)	Sch 7
as amended by				
Acts and Instruments (Framework Reform) (Consequential Provisions) Act 2015	126, 2015	10 Sept 2015	Sch 1 (item 486): 5 Mar 2016 (s 2(1) item 2)	—
Acts and Instruments (Framework Reform) (Consequential Provisions) Act 2015	126, 2015	10 Sept 2015	Sch 1 (item 495): 5 Mar 2016 (s 2(1) item 2)	—

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Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Classification (Publications, Films and Computer Games) Amendment (Classification Tools and Other Measures) Act 2014	99, 2014	11 Sept, 2014	Sch 1, Sch 2 and Sch 3 (items 1–4): 11 Sept 2014 (s 2(1) items 2, 3) Sch 3 (items 5–11) and Sch 5: 11 Dec 2014 (s 2(1) items 4, 7) Sch 3 (items 12–22) and Sch 7: 11 Sept 2015 (s 2(1) items 5, 9) Sch 4: 11 Mar 2015 (s 2(1) item 6) Sch 6 (items 1–28, 31–40): 12 Sept 2014 (s 2(1) item 8)	Sch 3 (item 11), Sch 4 (item 6), Sch 5 (item 8) and Sch 6 (items 31–40)
Crimes Legislation Amendment (Powers, Offences and Other Measures) Act 2015	153, 2015	26 Nov 2015	Sch 17 (items 1–3): 27 Nov 2015 (s 2(1) item 7)	—
Statute Law Revision (Spring 2016) Act 2016	67, 2016	20 Oct 2016	Sch 1 (item 13): 17 Nov 2016 (s 2(1) item 2)	—
Counter Terrorism Legislation Amendment Act (No. 1) 2016	82, 2016	29 Nov 2016	Sch 13: 30 Nov 2016 (s 2(1) item 2)	Sch 13 (item 2)
Public Governance and Resources Legislation Amendment Act (No. 1) 2017	92, 2017	23 Aug 2017	Sch 2 (item 50) and Sch 4: 23 Aug 2017 (s 2(1) item 1)	Sch 4
Classification (Publications, Films and Computer Games) Amendment (Industry Self-Classification and Other Measures) Act 2023	65, 2023	14 Sept 2023	Sch 1 (items 1–43) and Sch 2: 14 Mar 2024 (s 2(1) item 1)	Sch 1 (items 42, 43) and Sch 2 (items 3, 5, 13)

Endnote 3—Legislation history

Act	Number and year	Assent	Commencement	Application, saving and transitional provisions
Administrative Review Tribunal (Consequential and Transitional Provisions No. 2) Act 2024	39, 2024	31 May 2024	Sch 12 (items 38–49): 14 Oct 2024 (s 2(1) item 2)	—
Administrative Review Tribunal (Miscellaneous Measures) Act 2025	14, 2025	20 Feb 2025	Sch 2 (items 127C, 127D): 21 Feb 2025 (s 2(1) item 2)	—

Endnotes

Endnote 4—Amendment history

Endnote 4—Amendment history

Provision affected	How affected
Part 1	
s 3.....	am No 99, 2014
s 3A.....	ad No 99, 2014
	am No 65, 2023
s 4.....	am No 27, 2007
s 4A.....	ad No 99, 2014
s 5.....	am No 34, 1997; No 111, 2000; No 13, 2001; No 61, 2004; No 27, 2007; No 179, 2007; No 69, 2008; No 8, 2010; No 5, 2011; No 58, 2011; No 169, 2012; No 62, 2014; No 99, 2014; No 65, 2023
	ed C41
s 5A.....	ad No 13, 2001
s 5B.....	ad No 13, 2001
	am No 61, 2004; No 69, 2008; No 99, 2014
	rep No 99, 2014
s 5C.....	ad No 99, 2014
s 6A.....	ad No 24, 2001
Part 1A	
Part 1A.....	ad No 99, 2014
Division 1A	
s 6AA.....	ad No 99, 2014
	am No 65, 2023
Division 1	
s 6B.....	ad No 99, 2014
	am No 65, 2023
Division 2	
s 6C.....	ad No 99, 2014
s 6D.....	ad No 99, 2014
s 6E.....	ad No 99, 2014
	am No 65, 2023

Endnote 4—Amendment history

Provision affected	How affected
s 6F	ad No 99, 2014
s 6G.....	ad No 99, 2014
s 6H.....	ad No 99, 2014
	am No 39, 2024
Division 3	
Division 3	ad No 65, 2023
s 6HA.....	ad No 65, 2023
s 6HB	ad No 65, 2023
Part 2	
Division 1	
s 6J	ad No 99, 2014
	am No 65, 2023
s 7.....	am No 61, 2004; No 103, 2012
s 8.....	am No 13, 2001; No 27, 2007; No 99, 2014
s 8AA.....	ad No 99, 2014
s 8A.....	ad No 27, 2007
s 9.....	am No 179, 2007
s 9A.....	ad No 179, 2007
	am No 127, 2010; No 82, 2016
s 10.....	am No 13, 2001; No 99, 2014
	rep No 65, 2023
s 12.....	am No 65, 2023
s 12A.....	ad No 65, 2023
s 12B	ad No 65, 2023
s 12C	ad No 65, 2023
s 12D.....	ad No 65, 2023
Division 2	
Division 2 heading.....	rs No 99, 2014; No 65, 2023
Subdivision A	
Subdivision A heading.....	ad No 65, 2023
s 12E	ad No 65, 2023

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 13.....	am No 111, 2000; No 13, 2001; No 62, 2014
s 13A.....	ad No 13, 2001
s 14.....	am No 34, 1997; No 111, 2000; No 13, 2001; No 27, 2007; No 62 and 99, 2014
s 14A.....	ad No 27, 2007 rep No 65, 2023
s 14B.....	ad No 69, 2008 am No 99, 2014 rep No 65, 2023 am No 39, 2024 (amdt never applied (Sch 12 item 39))
s 15.....	am No 111, 2000; No 13, 2001; No 62, 2014
s 16.....	rs No 13, 2001
s 17.....	am No 111, 2000; No 13, 2001; No 61, 2004; No 27, 2007; No 62, 2014; No 99, 2014; No 65, 2023
Subdivision B	
Subdivision B heading.....	ad No 65, 2023
s 17AA.....	ad No 65, 2023
s 17A.....	ad No 99, 2014
s 17B.....	ad No 99, 2014 am No 65, 2023
s 17C.....	ad No 99, 2014
s 17D.....	ad No 99, 2014 am No 39, 2024
s 18.....	am No 13, 2001 rep No 65, 2023
Subdivision C	
Subdivision C heading.....	ad No 65, 2023
s 19.....	am No 13, 2001
s 20.....	am No 13, 2001; No 61, 2004; No 103, 2012; No 99, 2014
Division 2A	
Division 2A heading.....	rs No 65, 2023

Endnote 4—Amendment history

Provision affected	How affected
Division 2A.....	ad No 27, 2007
s 20A.....	ad No 99, 2014
	am No 65, 2023
s 21.....	am No 34, 1997; No 13, 2001; No 27, 2007; No 99, 2014; No 65, 2023
Division 2B	
Division 2B heading.....	ad No 65, 2023
s 21A.....	ad No 34, 1997
	rs No 13, 2001
	am No 65, 2023
s 21AA.....	ad No 27, 2007
s 21AB.....	ad No 69, 2008
	rep No 65, 2023
s 21AC.....	ad No 99, 2014
s 22.....	am No 111, 2000; No 13, 2001; No 69, 2008
	rep No 65, 2023
Division 2C	
Division 2C heading.....	ad No 65, 2023
s 22A.....	ad No 111, 2000
	am No 13, 2001; No 62, 2014; No 65, 2023
Division 2D	
Division 2D heading.....	ad No 65, 2023
s 22B.....	ad No 13, 2001
s 22C.....	ad No 140, 2004
	am No 27, 2007
Division 2E	
Division 2E heading.....	ad No 65, 2023
Division 2AA heading.....	rep No 65, 2023
Division 2AA.....	ad No 99, 2014
Subdivision A	
s 22CA.....	ad No 99, 2014

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 22CB	ad No 99, 2014
Subdivision B	
s 22CC	ad No 99, 2014
s 22CD	ad No 99, 2014
s 22CE.....	ad No 99, 2014
Subdivision C	
s 22CF	ad No 99, 2014
	am No 99, 2014; No 65, 2023
s 22CG	ad No 99, 2014
	am No 92, 2017
s 22CH	ad No 99, 2014
	am No 65, 2023
Subdivision D	
s 22CJ	ad No 99, 2014
Division 2F	
Division 2F heading.....	ad No 65, 2023
Subdivision A	
s 22D.....	ad No 27, 2007
	am No 65, 2023
s 22E	ad No 27, 2007
s 22F	ad No 27, 2007
s 22G.....	ad No 27, 2007
	am No 39, 2024
Subdivision B	
s 22H.....	ad No 27, 2007
s 22J	ad No 27, 2007
	am No 39, 2024
Division 2G	
Division 2G.....	ad No 65, 2023
Subdivision A	
s 22K.....	ad No 65, 2023

Endnote 4—Amendment history

Provision affected	How affected
s 22L	ad No 65, 2023
Subdivision B	
s 22M	ad No 65, 2023
s 22N	ad No 65, 2023
s 22P	ad No 65, 2023
s 22Q	ad No 65, 2023
s 22R	ad No 65, 2023
	am No 14, 2025
Subdivision C	
s 22S	ad No 65, 2023
s 22T	ad No 65, 2023
Division 3	
s 23	am No 24, 2001; No 99, 2014; No 153, 2015
Division 3A	
Division 3A	ad No 13, 2001
s 23A	ad No 13, 2001
	am No 99, 2014; No 153, 2015
Division 4	
s 24	am No 13, 2001; No 24, 2001; No 99, 2014; No 153, 2015
Division 5	
Division 5 heading	am No 65, 2023
s 25	am No 27, 2007; No 99, 2014
s 26	am No 27, 2007
s 27	am No 111, 2000; No 27, 2007; No 62, 2014
s 28	am No 65, 2023
Division 6	ad No 13, 2001
	rep No 99, 2014
s 28A	ad No 13, 2001
	am No 61, 2004
	rep No 99, 2014
s 28B	ad No 13, 2001

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	rep No 99, 2014
s 28C	ad No 13, 2001
	am No 61, 2004
	rep No 99, 2014
Part 3	
Part 3 heading	rs No 69, 2008
Division 1A	
Division 1A.....	ad No 99, 2014
s 28D.....	ad No 99, 2014
Division 1	
s 29.....	am No 34, 1997; No 27, 2007; No 69, 2008
s 30.....	am No 69, 2008; No 24, 2001
Division 2	
Division 2	rs. No. 69, 2008
Subdivision A	
s 31.....	rs No 69, 2008
	am No 39, 2024
Subdivision B	
s 32.....	rs No 69, 2008
s 33.....	am No 61, 2004
	rs No 69, 2008
s 34.....	rs No 69, 2008
s 35.....	rs No 69, 2008
s 36.....	rep No 69, 2008
Part 4	
s 37.....	rep No 69, 2008
	ad No 99, 2014
s 38.....	am No 13, 2001
	rs No 99, 2014
	am No 65, 2023
s 39.....	am No 13, 2001; No 99, 2014

Endnote 4—Amendment history

Provision affected	How affected
s 40.....	am No 99, 2014
Part 5	
s 41A.....	ad No 99, 2014 am No 65, 2023
s 41B.....	ad No 65, 2023
s 42.....	am No 13, 2001; No 61, 2004; No 69, 2008; No 103, 2012; No 65, 2023
s 42A.....	ad No 13, 2001
s 43.....	am No 99, 2014; No 65, 2023
s 44A.....	ad No 13, 2001 am No 27, 2007
s 44B.....	ad No 140, 2004 am No 27, 2007
Part 6	
Division 1A	
Division 1A.....	ad No 99, 2014
s 44C.....	ad No 99, 2014
Division 1	
s 46.....	am No 99, 2014
s 47.....	am No 27, 2007
s 48.....	am No 99, 2014
s 49.....	am No 99, 2014
Division 2	
s 52.....	am No. 27, 2007
s 53.....	am No 13, 2001; No 27, 2007; No 99, 2014
Division 3 heading.....	rep No 27, 2007
s 54.....	am No 146, 1999 rep No 27, 2007
s 55.....	rep No 27, 2007
Division 5	
s 59.....	am No 146, 1999; No 27, 2007

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
s 61.....	am No 146, 1999
s 65.....	am No 26, 2008; No 58, 2011
s 66.....	am No 46, 2011
s 67.....	rs No. 27, 2007
s 68.....	rep No 27, 2007
s 69.....	rep No 27, 2007
s 70.....	am No 24, 2001
	rep No 27, 2007
Part 7	
Division 1A	
Division 1A.....	ad No 99, 2014
s 71.....	rep No 27, 2007
	ad No 99, 2014
Division 1	
s 73.....	am No 27, 2007
Division 2	
s 77A.....	ad No 27, 2007
Division 4	
s 79A.....	ad No 27, 2007
s 83.....	am No 26, 2008; No 58, 2011
s 84.....	am No 46, 2011
Part 8	
s 85A (prev s 86 second occurring)	
s 86.....	am No 13, 2001
	rep No 27, 2007
	ad No 99, 2014
s 86 (second occurring).....	ad No 99, 2014
	reloc and renum No 67, 2016
s 87.....	rs No 111, 2000
	am No 27, 2007; No 62, 2014
s 87A.....	ad No 111, 2000

Endnote 4—Amendment history

Provision affected	How affected
	am No 69, 2008
s 87B	ad No 27, 2007
s 88A	ad No 27, 2007
s 88B	ad No 99, 2014
s 89	am No 27, 2007
s 91	am No 111, 2000; No 13, 2001; No 27, 2007; No 8, 2010; No 169, 2012; No 99, 2014; No 39, 2024
s 91A	ad No 111, 2000
	am No 5, 2011; No 62, 2014
s 91B	ad No 111, 2000
s 91C	ad No 111, 2000
s 92A	ad No 27, 2007
s 93	am No 27, 2007; No 99, 2014; No 65, 2023
Part 9	
s 93A	ad No 99, 2014
s 94	am No 34, 1997; No 111, 2000
s 95	am No 27, 2007
s 97	am No 69, 2008
s 97A	ad No 13, 2001
Part 10	
Part 10 heading	rs No 101, 2012
	exp 16 July 2022 (s 116)
Part 10	ad No 128, 2007
	exp 16 July 2022 (s 116)
Division 1	
s 98A	ad No 93, 2010
	exp 16 July 2022 (s 116)
s 98B	ad No 99, 2014
	exp 16 July 2022 (s 116)
s 99	ad No 128, 2007
	am No 93, 2010; No 101, 2012

Endnotes

Endnote 4—Amendment history

Provision affected	How affected
	exp 16 July 2022 (s 116)
s 99A.....	ad No 101, 2012
	exp 16 July 2022 (s 116)
s 100.....	ad No 128, 2007
	rep No 99, 2014
s 100A.....	ad No 93, 2010
	rs No 101, 2012
	exp 16 July 2022 (s 116)
s 100B.....	ad No 93, 2010
	rep No 101, 2012
s 100C.....	ad No 93, 2010
	am No 101, 2012
	exp 16 July 2022 (s 116)
Division 2	
s 101.....	ad No 128, 2007
	am No 101, 2012; No 180, 2012
	exp 16 July 2022 (s 116)
s 102.....	ad No 128, 2007
	am No 101, 2012; No 180, 2012
	exp 16 July 2022 (s 116)
s 103.....	ad No 128, 2007
	am No 101, 2012; No 180, 2012
	exp 16 July 2022 (s 116)
s 104.....	ad No 128, 2007
	rs No 180, 2012
	exp 16 July 2022 (s 116)
s 105.....	ad No 128, 2007
	exp 16 July 2022 (s 116)
Division 3	
s 106.....	ad No 128, 2007
	am No 101, 2012

Endnote 4—Amendment history

Provision affected	How affected
	exp 16 July 2022 (s 116)
s 107.....	ad No 128, 2007
	exp 16 July 2022 (s 116)
s 108.....	ad No 128, 2007
	exp 16 July 2022 (s 116)
s 109.....	ad No 128, 2007
	exp 16 July 2022 (s 116)
s 110.....	ad No 128, 2007
	exp 16 July 2022 (s 116)
s 111.....	ad No 128, 2007
	exp 16 July 2022 (s 116)
Division 4	
s 112.....	ad No 128, 2007
	exp 16 July 2022 (s 116)
s 113.....	ad No 128, 2007
	exp 16 July 2022 (s 116)
s 114.....	ad No 128, 2007
	rs No 101, 2012
	exp 16 July 2022 (s 116)
s 115.....	ad No 128, 2007
	rs No 101, 2012
	exp 16 July 2022 (s 116)
s 116.....	ad No 101, 2012
	exp 16 July 2022 (s 116)
Schedule.....	rep No 61, 2004